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TITLE 6—AGRICULTURAL CREDIT

Chapter III—Farmers Home Administration, Department of Agriculture

Subchapter D—Water Facilities Loans

[FHA Instruction 442.1]

PART 351—APPROVAL AUTHORITY

AUTHORIZATION TO STATE DIRECTORS TO REDELEGATE LOAN APPROVAL AUTHORITY TO COUNTY SUPERVISORS

Section 351.2 (b), Title 6, Code of Federal Regulations (17 F. R. 7808) is revised to further restrict authority of State Directors to redelegate loan approval authority to County Supervisors and to read as follows:

§ 351.2 *Authorization to State Directors to redelegate loan approval authority.* * * *

(b) State Directors are authorized to redelegate to County Supervisors, in charge of County Offices, all or any part of their authority to approve Water Facilities loans to individuals, except that County Supervisors may not be authorized to approve:

(1) Loans for irrigation purposes.

(2) Any loan, initial or subsequent, which will result in a total outstanding Water Facilities indebtedness in excess of $1,500.

(3) Loans to establish a Water Facilities group service.

(4) Loans made for the purpose of, or loans including funds for, acquiring memberships or water stock in, or paying assessments to, a water association.

(Sec. 6 (3), 50 Stat. 870; 16 U. S. C. 590w (3). Interprets or applies secs. 2 (3), 5, 50 Stat. 869, 870; 16 U. S. C. 590s (3), 590v)

[SEAL] DILLARD B. LASSETER,
Administrator,
Farmers Home Administration.

OCTOBER 9, 1952.

Approved: October 16, 1952.

C. J. MCCORMICK,
Acting Secretary of Agriculture.

[F. R. Doc. 52-11419; Filed, Oct. 21, 1952; 8:51 a. m.]

[FHA Instruction 442.4]

PART 354—PROCESSING LOANS TO INDIVIDUALS

APPLICATION FOR, APPROVAL OR REJECTION OF AND CLOSING OF LOANS TO INDIVIDUALS

1. Section 354.1, Title 6, Code of Federal Regulations (14 F. R. 6393) is revised to provide for use of Form FHA–197A, "Report on Application for Loan," instead of Forms FHA–14, "Farm and Home Plan," and FHA–14A, "Long-time Farm and Home Plan," for applicants who own but do not operate their farms.

2. Section 354.2, Title 6, Code of Federal Regulations (14 F. R. 6394) is revised to effect changes in title requirements.

3. Section 354.3, Title 6, Code of Federal Regulations (14 F. R. 6394) is revised to add provisions concerning closing loans involving security other than real estate and for obtaining property insurance.

§ 354.1 *Loan forms and routines—* (a) *Form FHA–197, "Application for FHA Services."* Each individual applying for initial or subsequent water facilities loans, or for technical assistance only, will fill out, execute, and file with the County Office, Form FHA–197.

(b) *Form FHA–121, "Certifications—Water Facilities Loans to Individuals."* Form FHA–121 will be prepared.

(1) Part I of Form FHA–121 will be executed by the applicant at the time his application is made.

(2) Part II of Form FHA–121 will be executed by the County Committee as follows:

(i) When the applicant is determined to be eligible, by signing the "County Committee Certification."

(ii) When the applicant is determined to be ineligible, by deleting the "County Committee Certification," by indicating the reasons for such determination under "Comments," and by signing in the space provided.

(c) *Farm and home plans.* (1) Form FHA–14, "Farm and Home Plan," will be prepared for all applicants except owners who are are non-operators.

(2) Form FHA–14A, "Long-time Farm and Home Plan," will be prepared for owner-operator and tenant-operator applicants where major adjustments are contemplated in the farm and home operations.

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(d) *Report for non-operating owner-applicants.* The following reports will be prepared in lieu of farm and home plans for every applicant who owns but does not operate the farm unit on which the proposed water facility is to be installed.

(1) Form FHA–197A, "Report on Application for Loan."

(2) Form FHA–440, "Farm Housing Appraisal Report."

(e) *Water facilities plan.* A water facilities plan containing the items enumerated below will be prepared.

(1) Form FHA–556, "Water Facilities Cost Estimate."

(2) A statement on the methods and plans proposed for constructing the water facility; water supply availability, suitability, and demand; estimated useful life of facility; contributions by the applicant and assistance to be rendered by the Government in connection with construction; date planned for starting construction; and plans, including an estimate of costs, for important operation and maintenance features of the facility. When land leveling is involved, information should be included also on such items as depth of top soil; depth to hardpan, rock and gravel; prevalence of alkali; and, in addition, detailed plans should be given for leveling various fields.

(3) Exhibits, such as maps, drawings, and charts necessary to illustrate the proposed construction methods and plans.

(f) *Form FHA–140, "Agreement with Real Estate Creditor."* Form FHA–140, when required by the loan approving official, will be executed.

(g) *Form FHA–214, "Option to Purchase Real Property, Water Rights, Water Stock, and So Forth."* This form may be used when the applicant proposes to acquire real property, water rights, water stock, or property of a similar nature out of the proceeds of the Water Facilities loan.

(h) *Form FHA–203, "Promissory Note."* This form will be executed by the applicant and his spouse, if any. When one loan is made to joint operators, all of the interested parties, including the spouses, if any, will execute the note. When a separate loan is made to each of the individuals owning a farm together and operating it jointly, each individual and his spouse, if any, will execute only his own note.

(i) *Form FHA–258, "Agreement to Extend Repayment Period."* This form will be used only for the loans to be secured by chattel liens which cannot run for the period needed by the borrower for the repayment of the loan and cannot be extended without his consent.

(j) *Form FHA–5, "Loan Voucher."* A Form FHA–5 will be prepared for the total amount of every advance as indicated in the promissory note and executed by the applicant or applicants. When a joint loan is made to the individuals owning a farm together and operating it jointly, each of the applicant owners will sign the original of the voucher.

§ 354.2 *Loan approval or rejection—*(a) *Real estate title requirements.* Before final loan approval title evidence furnished by applicants for Water Facilities loans to be secured by liens on real estate will be a copy of their deeds or purchase contracts and one of the following:

(1) A certificate of title or title report prepared by an attorney, an abstractor, an abstract company, or by the County Recorder, if not prohibited by State law to prepare it. It will set forth the condition of the title of the applicant to the land, water rights and easements, if any. It will show the manner in which the applicant's title was acquired and contain a list of all unreleased mortgages, unpaid taxes, pending suits against the applicant (whether a lis pendens has been filed or not), leases and easements granted and all other outstanding interests or encumbrances. The certificate of title or title report will cover the period of 25 years immediately prior to the date of the title certificate or report and such additional period as may be necessary to reach and include a conveyance which has been of record for at least 25 years, provided, however, the period covered by the title certificate or report may be less than 25 years if it extends back to the date of the recording of a deed conveying property from the United States. When the period covered extends from the date of a patent issued or a deed executed by the United States pursuant to the homestead or reclamation laws, the certificate of title or title report must show any outstanding liens created prior to the issuance of the patent or execution of the deed which have been of record less than 25 years. When the certificate of title or title report is based upon an examination of the public records, no abstract of title need be furnished with the certificate or report. When the certificate or report is based upon the examination of an abstract of title, the abstract shall accompany the certificate or report.

(2) An abstract of title covering the period required in subparagraph (1) of this paragraph prepared by an attorney, an abstractor, an abstract company, or by the County Recorder, if not prohibited by State law to prepare it. The abstract will reveal conveyances, unreleased mortgages, unpaid taxes, other encumbrances, pending suits, leases, easements, rights-of-way, water rights, and all other outstanding interests. In the case of a foreclosure in the chain of title, only the trustee's deed or sheriff's deed or similar instrument will be required in abstracting the transaction. In the case of any foreclosure which has not progressed to the point of issuing a deed, only a notation of the pending litigation will be required in lieu of a detailed abstract of the foreclosure proceedings. In case the applicant acquired title by inheritance, only sufficient evidence of the probate proceedings to show such acquisition of title will be required.

(3) A certificate of title, title opinion, or policy of title insurance obtained from a title insurance company and meeting the same requirements as those set forth in subparagraph (1) of this paragraph.

(4) When a loan of $1,000 or less is to be secured by a real estate mortgage, the applicant may furnish, in lieu of any of the types of title evidence prescribed in subparagraph (1), (2), and (3) of this paragraph, a lien search on Form FHA–87, "Report of Lien Search," prepared by an abstractor, abstract company, practicing attorney, or by the county recorder, if he is not prohibited by State law from preparing it.

(b) *Rejection of loans.* When a loan application is rejected, the loan approving official will indicate the reasons for the rejection on Form FHA–197.

§ 354.3 *Loan closing.* All loan approval conditions must be met.

(a) After approval of a loan, the County Supervisor will notify the applicant of the approval and of any special loan approval conditions which must be met before the loan can be closed. The notification will cover any requirements regarding the furnishing of title documents. If no such conditions were made, the notification may be delayed until the loan check is received.

(b) Before a loan can be closed, the applicant must comply with any special loan approval conditions required to be met by the time the loan is closed.

(c) When real estate, interests in real estate or water rights, are not to be taken as security, the following actions will be taken by the County Supervisor in closing the loan:

(1) Form FHA–87, "Report of Lien Search," will be obtained at the time the loan is being closed to determine that security requirements are being met. When a mortage will be taken on property purchased with loan funds and such property will become affixed to real estate, a search of the real estate records will be made and Form FHA–87 will be prepared showing the present ownership of and the outstanding liens, including taxes and judgments, against the real estate to which the property is to be attached. Applicants will select the source through which such reports are obtained.

(2) Severance agreements will be obtained on Form FHA–259, "Severance Agreement," whenever a chattel mortgage only is to be taken on property purchased with loan funds and such property will become attached to real estate and also in all cases of loans to tenants. It will be executed by the County Supervisor on behalf of the Government, by the owner of the real estate, and by such other parties as are shown on Form FHA–87 to have an interest in the real estate on which the facility will be installed. The severance agreement must be obtained not later than the date on which the property purchased with loan funds is delivered on the farm.

(3) Form FHA–30...., "Crop and Chattel Mortgage," will be executed. All deletions will be initialed by the borrower before the form is executed. The chattel mortgage will be executed by the borrower and by his spouse, if any. At the time the loan is closed or before any funds are withdrawn from the supervised bank account a mortgage will be taken covering livestock, equipment, and crops selected to serve as security for the loan, as well as any property already on hand to be paid for with loan funds. Property which is subsequently pur-

chased with loan funds will be mortgaged at the time such property is purchased. Lien instruments must be delivered to the recording office for recordation or filing, whichever is appropriate, as soon as such instruments are executed.

(4) County Supervisors are authorized to execute, accept and file or record any legal instruments necessary to the obtaining or preserving of security for loans, including mortgages and similar lien instruments (where the holder of a mortgage or other lien is required to execute the instrument) and affidavit, acknowledgments and other certifications (where the mortgages must execute such a certification under state law), and to accept and file or record subordinations and nondisturbance agreements, assignments, and other documents necessary to the obtaining of security.

(d) *Obtaining property insurance.* When property insurance is required, the borrower will apply for the required amount of such insurance and will pay the premium thereon at the time the loan is closed. Insurance may be obtained from any insurance company licensed to do such business in the state where the property is located.

(1) The insurance policy must contain the standard mortgage clause (without contribution) printed in or attached to the policy, or the mortgage clause (without contribution) which has been approved and made mandatory by the laws of the state, or Form FHA–878, "Property Insurance Mortgage Clause." In jurisdictions where, under local laws or conditions, none of these mortgage clauses may be used, the clause mandatory in that locality may be used after approval by the National Office. The "United States of America" will be shown as "Mortgagee" in the mortgage clause or in the loss payable clause.

(2) If the borrower has insurance in force covering losses or damage from the hazards covered customarily by insurance policies in the area, additional insurance need not be required, provided:

(i) The amount of the insurance in force is as much as the amount required;

(ii) An application for endorsement is submitted to the insuring company before the loan is closed to include the property purchased with the loan under the existing policy, if insurance on such property will be required; and

(iii) The borrower obtains a mortgage clause in the existing policy which will show the "United States of America" as "Mortgagee."

(3) If the loan is secured in part by a second lien on real estate, and the borrower has the required amount of insurance in force on the farm buildings, the provisions of subparagraph (2) of this paragraph must be complied with. The mortgage clause in the existing policy must show the "United States of America" as "Mortgagee," as its interest may appear. When less than the required amount of insurance is in force, additional insurance will be obtained through a separate insurance policy covering the water facility installation. This policy will show the United States of America as first mortgagee in the mortgage clause so that the proceeds of the policy will be payable to the Government or the borrower in case of loss.

(Sec. 6 (3), 50 Stat. 870; 16 U. S. C. 590w (3). Interpret or apply sec. 2 (3), 5, 50 Stat. 869, 870; 16 U. S. C. 590s (3), 590v)

[SEAL] DILLARD B. LASSETER,
Administrator,
Farmers Home Administration.

OCTOBER 9, 1952.

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C. J. MCCORMICK,
Acting Secretary of Agriculture.

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Subchapter E—Account Servicing

[Administration Letter 285 (462)]

PART 371—SECURITY SERVICING AND LIQUIDATION: OPERATING LOANS

SUBPART A—GENERAL SECURITY SERVICING

LIEN WAIVERS IN CONNECTION WITH COMMODITY CREDIT CORPORATION LOANS ON WOOL

Section 371.8, Title 6, Code of Federal Regulations (13 F. R. 9451), is amended:

1. To add a new paragraph (a) (5) to authorize execution of lien waivers in connection with Commodity Credit Corporation loans on wool.

2. To add a new paragraph (b) (1) to set forth the complete procedures and routines for handling lien waivers in connection with Commodity Credit Corporation loans on wool.

Paragraphs (a) (5) and (b) (1) of § 371.8 are added to read as follows:

§ 371.8 *Waivers of liens (other than liens on real estate) for borrowers receiving loans under Commodity Credit Corporation Program.* * * *

(a) *Authority.* * * *

(5) In connection with Commodity Credit Corporation loans on wool, only the conditions and requirements of paragraph (b) (1) of this section must be met.

(R. S. 161, sec. 6 (3), 50 Stat. 870, sec. 41 (1), 60 Stat. 1066; 5 U. S. C. 22, 16 U. S. C. 590w (3), 7 U. S. C. 1015 (i))

(b) *Routines for handling lien waivers.* * * *

(1) In connection with lien waivers to permit Farmers Home Administration borrowers to share in Commodity Credit Corporation loans on wool, the following conditions and requirements, which apply only to wool loans, must be met:

(i) When a request is received to execute the required waiver, the County Supervisor will prepare Form FHA–911, "Assignment of Proceeds From the Consignment of Wool." The original and one copy will be executed by the producer (borrower). The unexecuted copy will be given to the producer. The original and the executed copy will be transmitted to the handler or pool manager with advice that the waiver will be executed upon the return of the original properly executed by the handler or pool manager as consignee. When a prior lienholder is involved, the assignment will be prepared in an original and three copies and the original and two copies will be executed by the borrower. The extra executed copy will be delivered to the prior lienholder. The assignment will be revised to provide that the prior lienholder, as well as the producer and the Farmers Home Administration, will be listed on checks of the consignee. It is necessary to obtain only one assignment covering all wool to be delivered to a particular handler or pool manager by a particular producer during the period covered by the assignment although quantities of wool may be delivered at different intervals within the period. When the Commodity Credit Corporation loan is being obtained by a wool handler, the waiver form on Exhibit A attached to Production and Marketing Administration (PMA) Instruction 722 (wool)–1 will be used. When the loan is being obtained by a pool manager, the waiver form on Exhibit B attached to said instruction will be used.

(ii) When a producer has paid in full his account with the Farmers Home Administration, and adidtional income is to be received from the wool, the County Supervisor will notify the handler or pool manager, whichever is appropriate, that the rights of the United States under the assignment are released and that the Farmers Home Administration should not be named as a joint payee on future checks representing payments to the producer. The letter will point out that the rights of other lienholders are not to be affected by this action of the Farmers Home Administration.

(iii) All checks received pursuant to the procedure set forth in this subparagraph will be handled in the same manner as other remittances in accordance with the applicable provisions of Part 362 of this chapter and the proceeds shall be subject to the release authorities contained in this subpart.

(R. S. 161, sec. 6 (3), 50 Stat. 870, sec 41 (1), 60 Stat. 1066; 5 U. S. C. 22, 16 U. S. C. 590w (3), 7 U. S. C. 1015 (i))

[SEAL] DILLARD B. LASSETER,
Administrator,
Farmers Home Administration.

OCTOBER 2, 1952.

Approved: October 17, 1952.

C. J. MCCORMICK,
Acting Secretary of Agriculture.

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TITLE 7—AGRICULTURE

Chapter III—Bureau of Entomology and Plant Quarantine, Department of Agriculture

PART 324—MOLLUSKS

REGULATIONS GOVERNING ENTRY

On July 25, 1952, there was published in the FEDERAL REGISTER (17 F. R. 6826) a notice of proposed rule making concerning the adoption of regulations, to appear as Part 324 of Chapter III, Title 7 of the Code of Federal Regulations. After due consideration of relevant matters presented, and pursuant to the authority vested in the Secretary of Agriculture by Public Law 152, 82d Congress (65 Stat. 335, 7 U. S. C. Sup. 441), ap-

proved September 22, 1951, to prevent the entry of certain mollusks into the United States, Chapter III of Title 7 of the Code of Federal Regulations is amended by adding thereto the following:

Sec.
324.1 Definitions.
324.2 Mollusk infestation in Guam.
324.3 Inspection.
324.4 Treatment.
324.5 Entry of mollusks; permits required.
324.6 Restrictions on issuance of permits.
324.7 Permit procedure.
324.8 Mollusks entered for scientific purposes.

AUTHORITY: §§ 324.1 to 324.8 issued under 65 Stat. 335, 7 U. S. C. Sup. 441.

§ 324.1 *Definitions.* Words used in the singular form in the regulations in this part shall be deemed to import the plural and vice versa, as the case may demand. For the purposes of this part, the following words shall be construed, respectively, to mean:

(a) *Chief of Bureau.* The Chief of the Bureau of Entomology and Plant Quarantine, or any officer or employee of the Bureau to whom authority has heretofore been delegated or may hereafter be delegated to act in his stead.

(b) *Bureau.* The Bureau of Entomology and Plant Quarantine, United States Department of Agriculture.

(c) *Inspector.* Any person authorized by the Secretary of Agriculture of the United States to enforce the provisions of the Plant Quarantine Act (7 U. S. C. 151 et seq.).

(d) *Person.* Any individual, corporation, company, association, firm, partnership, society, joint stock company, or other organized group of any of the foregoing.

(e) *Owner.* The owner or the person having responsible custody of a carrier or other regulated article subject to the regulations in this part.

(f) *Mollusk.* All living stages, including eggs, of the giant African snail or other species of terrestrial or fresh-water forms of the phylum Mollusca.

(g) *United States.* The 48 States, the District of Columbia, the Canal Zone, and the United States possessions, including but not limited to the Territory of Hawaii and other Territories of the United States, but excluding Guam.

(h) *Carrier.* Any vessel, vehicle, aircraft, or other kind of conveyance entering any part of the United States.

(i) *Regulated article.* Any produce, baggage, salvaged war material or other goods entering any part of the United States.

(j) *Permit.* An authorization allowing the entry into the United States of certain mollusks in accordance with the regulations in this part.

(k) *Treatment.* Fumigation or any other process designed to eliminate infestation by any mollusk prohibited entry under the regulations in this part.

§ 324.2 *Mollusk infestation in Guam.* The Secretary of Agriculture finds that Guam is infested with the giant African snail. Therefore, the entry of mollusks, carriers, and other regulated articles from Guam into any part of the United States is subject to the same conditions as are applicable to the entry thereof from foreign countries.

§ 324.3 *Inspection.* As a condition of entry into any part of the United States, all carriers and other regulated articles from any foreign country or Guam shall be subject to examination by an inspector for the purpose of determining whether they are infested with any mollusk prohibited entry under the regulations in this part.

§ 324.4 *Treatment.* (a) A carrier or other regulated article found upon examination to be infested with any mollusk prohibited entry under the regulations in this part shall be promptly removed from the United States or shall be promptly treated by the owner or his agent in a manner prescribed by the inspector and under his supervision. Pending such action, the carrier or other regulated article shall be immediately subject to such safeguards against escape of the mollusks as the inspector may prescribe.

(b) All costs or charges incident to the inspection, handling, cleaning, safeguarding, or treatment of an infested carrier or other regulated article, except for the services of the inspector during regularly assigned hours of duty and at the usual places of duty, shall be borne by the owner or his agent. Neither the Department of Agriculture nor the inspector will be responsible for any costs accruing for demurrage, shipping charges, wharfage, cartage, labor, chemicals, or the like incidental to such inspection, handling, cleaning, safeguarding, or treatment.

(c) If the treatment or safeguards prescribed by the inspector are not applied promptly by the owner or his agent, the inspector shall apply measures necessary to prevent the escape of the mollusks. The entire cost of such application shall be borne by the owner or his agent and shall constitute a debt payable to the Treasurer of the United States.

§ 324.5 *Entry of mollusks; permits required.* Entry into the United States of any mollusks from any foreign country or Guam is prohibited, except under permit issued by the Chief of Bureau or authorized official of the United States Public Health Service, and in compliance with such safeguards as may be prescribed in connection with the issuance of such permit.

§ 324.6 *Restrictions on issuance of permits.* Except as provided in § 324.8, permits will not be issued for the entry of the giant African snail, Achatina fulica (Bowdich), or any other species of Achatina; Theba pisana (Muller); any species of slug; or any other species of mollusks determined by the Chief of Bureau to be similar to the giant African snail in its destructiveness to plant life. Permits will also be refused for the entry of other species of mollusks unless such mollusks are entered under § 324.8 or it is determined by the Chief of Bureau that the particular shipment will be entered and subsequently handled under such safeguards as he deems necessary to prevent injury to the agriculture of the United States.

§ 324.7 *Permit procedure.* (a) Any person desiring to enter any mollusks into the United States for purposes other than medical research may submit to the Chief of Bureau an application for permit stating the name and address of the importer, the approximate quantity and species (scientific name) it is desired to enter, the country of origin, the port of entry, the purpose of the entry, and the place where and conditions under which the mollusks will be handled. If available, an empty shell of the species to be entered should accompany the application, for purposes of identification. In considering such applications, the Chief of Bureau will confer with other interested agencies, which may include the Division of Mollusks, United States National Museum; United States Public Health Service, Federal Security Agency; and state plant pest officials, in determining the eligibility for entry of the species covered by the applications. Upon determination that a particular shipment to be entered for purposes other than medical research is eligible for entry under § 324.6 or § 324.8, a permit will be issued by the Chief of Bureau specifying the conditions of entry and the port of entry, except that if the species is subject to regulation by the United States Public Health Service, the application for permit will be referred to said agency for such action as it finds is warranted under its regulations.

(b) Permits for entry of mollusks for purposes of medical research will be issued by the United States Public Health Service in accordance with regulations issued by said Service. Applications for such permits should be made directly to the Surgeon General, United States Public Health Service, Washington 25, D. C.

§ 324.8 *Mollusks entered for scientific purposes.* Mollusks not otherwise eligible for entry under § 324.6 may be entered into the United States for purposes of medical research under permit issued by an authorized official of the United States Public Health Service, or for other scientific purposes under permit issued by the Chief of Bureau, under such safeguards and restrictions as may be prescribed in connection with the issuance of such permit.

These regulations shall be effective October 22, 1952.

The purpose of these regulations is to prevent the importation into noninfested parts of the United States of terrestrial and fresh-water mollusks which would be injurious to agriculture. This objective will be accomplished by requiring permits for the entry of all terrestrial and fresh-water mollusks, and providing for the inspection, treatment, and safeguarding of carriers and other regulated articles coming from a foreign country or from Guam to any other part of the United States.

Prompt action is necessary with respect to these regulations in order to prevent the entry into the United States of injurious terrestrial and fresh-water mollusks. Therefore, good cause is found, in accordance with section 4 (c) of the Administrative Procedure Act (5 U. S. C. 1003 (c)) for making the foregoing amendments effective less than 30

days after their publication in the FEDERAL REGISTER.

Done at Washington, D. C., this 16th day of October 1952.

[SEAL] C. J. McCORMICK,
Acting Secretary of Agriculture.

[F. R. Doc. 52-11418; Filed, Oct. 21, 1952; 8:49 a. m.]

Chapter IX—Production and Marketing Administration (Marketing Agreements and Orders), Department of Agriculture

PART 909—ALMONDS GROWN IN CALIFORNIA

ADDITIONAL OUTLETS FOR SURPLUS ALMONDS

Notice of proposed rule making with respect to additional outlets for surplus almonds was published in the FEDERAL REGISTER of September 7, 1952 (17 F. R. 8364), pursuant to the provisions of Marketing Agreement No. 19 and Order No. 9 regulating the handling of almonds grown in California (7 CFR 1951 Sup., Part 909). In said notice, it was proposed to designate as approved outlets for surplus almonds, diced almonds, sliced almonds, and slivered almonds, packed in hermetically sealed tin or glass containers of net contents not in excess of 8 ounces. Definitions of diced almonds, sliced almonds, and slivered almonds were included in the proposed rule. Opportunity was afforded interested persons to submit to the Department written data, views, or arguments for consideration prior to issuance of a final rule in respect to additional surplus outlets.

During the specified period for receiving such documents, the Almond Control Board, the administrative agency for the aforesaid agreement and order, which recommended the additional outlets, submitted new definitions of diced, sliced, and slivered almonds with its recommendation that they be substituted for those contained in the proposed rule. The Board believes that the detailed specifications set forth in the proposed administrative rule are unduly and unnecessarily burdensome, and that the only purpose of inspection of the products is to identify them as products for which surplus almonds may be used. This position appears reasonable and the new definitions recommended appear adequate for identifying the diversion products.

During the prescribed period for filing data, views, or arguments, a letter was received from a handler indicating approval of the objective of the proposed rule, but expressing the view that there should be a minimum price for almonds used in these outlets. The control of disposition of surplus in approved outlets is a responsibility of the Almond Control Board and is a matter aside from the designation of authorized outlets. Prior to the issuance of the proposed rule, views of the Peanut and Nut Salters Association were received in opposition to the recommendation of the Almond Control Board in respect to additional outlets for surplus almonds and expressing the opinion that the proposed outlets are competitive. No data were presented to substantiate the Association's position.

Therefore, after consideration of all relevant matters, the administrative rule is as follows:

§ 909.402 *Additional outlets for surplus almonds.* Diced almonds, sliced almonds, and slivered almonds, as defined in this section, packed in hermetically sealed tin or glass containers of net contents not in excess of 8 ounces, are hereby designated as approved outlets for surplus almonds.

(a) "Diced almonds" means pieces of shelled almonds (raw, roasted, or otherwise prepared, and may include seasoning ingredients) practically all of which will pass through a round opening ⅜ inch in diameter.

(b) "Sliced almonds" means thin, wafery, slices of shelled almonds (raw, roasted, or otherwise prepared, and may include seasoning ingredients) practically none of which are thicker than ⅛ inch.

(c) "Slivered almonds" means thin, narrow strips of shelled almonds (raw, roasted, or otherwise prepared, and may include seasoning ingredients) practically all of which will pass through a round opening ⅜ inch in diameter.

It is hereby found and determined that good cause exists for making this administrative rule effective upon the 10th day after publication in the FEDERAL REGISTER, instead of waiting 30 days after publication for the reasons that (1) it is desirable to have the rule become effective as soon as practicable in order to permit maximum use of this outlet during the current crop year; and (2) a period of 10 days after publication of the rule is deemed adequate for necessary arrangements for inspection of the authorized products and necessary actions by the Almond Control Board in connection with supervision of the disposition of surplus almonds in these outlets.

(Sec. 5, 49 Stat. 753, as amended; 7 U. S. C. and Sup. 608c)

Issued at Washington, D. C., this 17th day of October 1952, to become effective on the 10th day after publication of this document in the FEDERAL REGISTER.

[SEAL] C. J. McCORMICK,
Acting Secretary of Agriculture.

[F. R. Doc. 52-11451; Filed, Oct. 21, 1952; 8:56 a. m.]

TITLE 12—BANKS AND BANKING

Chapter II—Federal Reserve System

Subchapter A—Board of Governors of the Federal Reserve System

[Reg. T]

PART 220—CREDIT BY BROKERS, DEALERS, AND MEMBERS OF NATIONAL SECURITIES EXCHANGES

ARRANGEMENT FOR CREDIT BY BROKERS OR DEALERS

§ 220.109 *Arrangement for credit by brokers or dealers.* (a) The Securities Exchange Act of 1934 and this part issued thereunder, provide in substance that any broker or dealer who is subject to this part shall not extend or maintain any credit on unregistered securities (i. e., securities not registered on a national securities exchange). The act (section 7 (c)) and § 220.7 (a) also provide in substance that any such broker or dealer shall not arrange for any extension or maintenance of credit on unregistered securities. There are certain exceptions to these prohibitions, but they are not relevant to the present question.

(b) The Board has been asked whether there would be a violation of the above-mentioned prohibition against arranging credit on unregistered securities if a broker or dealer who is subject to Part 220 participated in a certain financing plan which a national bank has under consideration. The proposed plan would finance the purchase of shares which are issued by so-called open-end investment trusts and which are not registered on any national securities exchange.

(c) The shares are on continuous sale and can be acquired by periodic cash purchases without the need for any bank financing. However, the bank proposes to make loans to prospective purchasers for the purpose of financing the purchase of larger amounts of the investment trust shares. The shares would be pledged to secure the loan, and the borrower would undertake to pay the principal and interest on the loan in monthly installments.

(d) The bank would furnish forms of a credit application and note to security dealers and their salesmen, who would then make them available to the customers to whom they are selling or contemplate selling the investment trust shares. When the forms had been completed and executed, the dealers would return them to the bank.

(e) The bank would have complete discretion as to whether or not to approve any such application. The bank would not pay any fees or commissions to the security dealers, although the dealers would, of course, get the benefit of increased security sales that might result from operation of the plan.

(f) Upon consideration of the various aspects of the proposed plan, the Board of Governors is of the opinion that if any broker or dealer who is subject to this part participated in the plan in the manner contemplated, there would be an arranging for the extension or maintenance of credit on unregistered securities in violation of section 7 (c) of the Securities Exchange Act of 1934 and § 220.7 (a).

(Sec. 23, 48 Stat. 901, as amended; 15 U. S. C. 78w. Interprets or applies secs. 3, 7, 8, 17, 48 Stat. 882, as amended, 886, as amended, 833, as amended, 897, as amended; 15 U. S. C. 78c, 78g, 78h, 78q)

BOARD OF GOVERNORS OF THE FEDERAL RESERVE SYSTEM,
[SEAL] MERRITT SHERMAN,
Assistant Secretary.

[F. R. Doc. 52-11401; Filed, Oct. 21, 1952; 8:46 a. m.]

TITLE 24—HOUSING AND HOUSING CREDIT

Chapter II—Federal Housing Administration, Housing and Home Finance Agency

Subchapter D—Multifamily and Group Housing Insurance

PART 232—MULTIFAMILY HOUSING INSURANCE; ELIGIBILITY REQUIREMENTS OF MORTGAGE COVERING MULTIFAMILY HOUSING

PART 241—COOPERATIVE HOUSING INSURANCE; ELIGIBILITY REQUIREMENTS FOR PROJECT MORTGAGE

Subchapter O—National Defense Rental Housing Insurance

PART 296—ELIGIBILITY REQUIREMENTS FOR NATIONAL DEFENSE RENTAL HOUSING INSURANCE

ELIGIBILITY FOR INSURANCE AND ELIGIBLE MORTGAGES IN ALASKA OR IN GUAM

1. Item 2 of F. R. Doc. 52-9850, appearing on page 8147 of the issue for Wednesday, September 10, 1952, is hereby amended by striking out "Section 232.18" and inserting in lieu thereof "Section 232.18 (a)".

2. Item 2 of F. R. Doc. 52-9851, appearing at pages 8147 and 8148 of the issue for Wednesday, September 10, 1952, is hereby amended by striking out "Section 241.17" and inserting in lieu thereof "Section 241.17 (a)".

3. Item 2 of F. R. Doc. 52-9856, appearing on page 8149 of the issue for Wednesday, September 10, 1952, is hereby amended by striking out "Section 296.19" and inserting in lieu thereof "Section 296.19 (a)".

Issued at Washington, D. C., October 16, 1952.

[SEAL] WALTER L. GREENE,
Federal Housing Commissioner.

[F. R. Doc. 52-11402; Filed, Oct. 21, 1952; 8:46 a. m.]

TITLE 32—NATIONAL DEFENSE

Chapter VI—Department of the Navy, Department of Defense

Subchapter C—Personnel

PART 727—INTERIM INTERPRETATIONS, POLICIES, AND PROCEDURES GOVERNING TRANSFER OF CERTAIN NAVAL PERSONNEL TO RESERVE COMPONENTS

Interim interpretations, policies, and procedures governing transfer of certain naval personnel to reserve components pursuant to the provisions of sections 4 (d) (1) and 4 (d) (3) of the Universal Military Training and Service Act, as amended.

Sec.
727.1 Purpose.
727.2 Scope.
727.3 Statutory provisions concerned.
727.4 Interpretations and policies.
727.5 Procedures.

AUTHORITY: §§ 727.1 to 727.5 issued under sec. 4, 62 Stat. 605, as amended; 50 U. S. C. App. Sup. 454.

§ 727.1 *Purpose.* This part prescribes interim interpretations, policies, and procedures governing transfer of certain naval personnel to reserve components pursuant to the provisions of sections 4 (d) (1) and 4 (d) (3) of the Universal Military Training and Service Act, as amended, pending promulgation of permanent regulations under uniform Armed Forces policies to be prescribed by the Secretary of Defense.

§ 727.2 *Scope.* This part is intended only to cover individual cases and classes of cases in which, pending the promulgation of permanent regulations, the Chief of Naval Personnel or the Commandant of the Marine Corps, as appropriate, considers the needs of the Service concerned to require that reserve obligations imposed by the Universal Military Training and Service Act, as amended, be immediately recognized and that action be taken to assure fulfillment.

§ 727.3 *Statutory provisions concerned.* (a) Section 4 (d) (1) of the Universal Military Training and Service Act, as amended, provides:

Each person who hereafter and prior to the enactment of the 1951 Amendments to the Universal Military Training and Service Act is inducted, enlisted, or appointed (except a person enlisted under subsection (g) of this section) and serves for a period of less than three years in one of the armed forces and meets the qualifications for enlistment or appointment in a reserve component of the armed force in which he serves, shall be transferred to a reserve component of such armed force, and until the expiration of a period of five years after such transfer, or until he is discharged from such reserve component, whichever occurs first, shall be deemed to be a member of such reserve component and shall be subject to such additional training and service as may now or hereafter be prescribed by law for such reserve component: Provided, That any such person who completes at least twenty-one months of service in the armed forces and who thereafter serves satisfactorily (1) on active duty in the armed forces under a voluntary extension for a period of at least one year, which extension is hereby authorized, or (2) in an organized unit of any reserve component of any of the armed forces for a period of at least thirty-six consecutive months, shall, except in time of war or national emergency declared by the Congress, be relieved from any further liability under this subsection to serve in any reserve component of the armed forces of the United States, but nothing in this subsection shall be construed to prevent any such person, while in a reserve component of such forces, from being ordered or called to active duty in such forces.

(b) Section 4 (d) (3) of the Universal Military Training and Service Act, as amended, provides:

Each person who, subsequent to the date of enactment of this paragraph, is inducted, enlisted, or appointed, under any provision of law, in the Armed Forces, including the reserve components thereof, or in the National Security Training Corps prior to attaining the twenty-sixth anniversary of his birth shall be required to serve on active training and service in the Armed Forces or in training in the National Security Training Corps, and in a reserve component, for a total period of eight years, unless sooner discharged on the grounds of personal hardship, in accordance with regulations and standards prescribed by the Secretary of Defense (or the Secretary of the Treasury with respect to the United States Coast Guard). Each such person, on release from active training and service in the Armed Forces or from training in the National Security Training Corps, shall, if physically and mentally qualified, be transferred to a reserve component of the Armed Forces, and shall serve therein for the remainder of the period which he is required to serve under this paragraph and shall be deemed to be a member of such reserve component during such period. In case the Secretary of the Army, the Secretary of the Navy, or the Secretary of the Air Force (or the Secretary of the Treasury with respect to the United States Coast Guard), determines that enlistment, enrollment, or appointment in, or assignment to, an organized unit of a reserve component or an officers' training program of the armed force in which he served is available to, and can, without undue personal hardship, be filled by any such person, it shall be the duty of such person to enlist, enroll, or accept appointment in, or accept assignment to, such organized unit or officers' training program, and to serve satisfactorily therein. The Secretaries of the Army, Navy, and Air Force, with the approval of the Secretary of Defense (and the Secretary of the Treasury with respect to the United States Coast Guard), may provide, by regulations which shall be as nearly uniform as practicable, for the release from training and service in the Armed Forces prior to serving the periods required by subsection (b) of this section of individuals who volunteer for and are accepted into organized units of the Army National Guard and Air National Guard and other reserve components. Nothing in this subsection shall be construed to prevent any person, while in a reserve component of the Armed Forces, from being ordered or called to active duty in such Armed Force.

§ 727.4 *Interpretations and policies.* (a) Under section 4 (d) (1) of the Universal Military Training and Service Act, as amended, the following interpretations shall be applicable in administering this part:

(1) Persons enlisting or reenlisting in the U. S. Navy or the U. S. Marine Corps at any time between the dates June 24, 1948 and June 19, 1951, both dates inclusive (except those so enlisting for a period of one year pursuant to section 4 (g) of the Universal Military Training and Service Act), and whose service subsequent to such enlistment or reenlistment has been of a total duration of less than 3 years, may, in the discretion of the Chief of Naval Personnel or the Commandant of the Marine Corps, as appropriate, be transferred to a reserve component of the Navy or the Marine Corps, and be required to serve therein for a period of 5 years from the date of such transfer, unless sooner discharged from such reserve component for the purpose of complete separation from any military status.

(2) Transfer to a reserve component shall not be made in the case of any person falling within the class defined in subparagraph (1) of this paragraph, who, subsequent to his enlistment or reenlistment between the dates indicated, has been discharged or permitted to resign for the purpose of effecting his complete separation from any military status, unless such discharge or acceptance of a resignation was or is for the purpose of immediate entry or reentry in the same or any other component of the

Armed Forces in the same or any other status or for the purpose of entry into an officers' training program in which participants have a military status.

(3) In computing the duration of service subsequent to enlistment or reenlistment between the dates indicated, any service performed in an officers' training program in which the individual concerned had or has a military status shall be considered as service under such enlistment or reenlistment. (This interpretation shall be disregarded in making computations of "service" for any other purpose or purposes.)

(b) Under section 4 (d) (3) of the Universal Military Training and Service Act, as amended, the following interpretations shall be applicable in administering this part:

(1) Except as hereinafter indicated, persons enlisting or reenlisting in any regular or reserve component of the Armed Forces at any time subsequent to June 19, 1951, and prior to attaining the twenty-sixth anniversary of their birth, and who have not acquired a reserve obligation under section 4 (d) (1) or 4 (d) (2), are obligated to serve in the Armed Forces for a total period of eight years following such enlistment or reenlistment, unless sooner discharged for the purpose of complete separation from any military status.

(2) In the discretion of the Chief of Naval Personnel or the Commandant of the Marine Corps, as appropriate, a person falling within the class defined in subparagraph (1) of this paragraph, may be transferred to a reserve component of the Navy or of the Marine Corps, and required to serve therein for such period as may be required to complete the remaining portion of his eight-year obligation.

(3) The eight-year obligation is considered terminated upon a discharge or acceptance of resignation for the purpose of complete separation from any military status, unless such discharge or acceptance of resignation was or is for the purpose of immediate entry or reentry in the same or any other component of the Armed Forces in the same or any other status, or for the purpose of entry into an Officers' Training Program in which participants have a military status.

(4) In computing service performed toward the fulfillment of the eight-year obligation, any service performed in an Officers' Training Program in which the individual concerned had or has a military status shall be counted in the same manner as services in a regular or reserve component of the Armed Forces. (This interpretation shall be disregarded in making computations of "service" for any other purpose or purposes.)

§ 727.5 *Procedures.* In any case or class of cases in which the Chief of Naval Personnel or the Commandant of the Marine Corps, as appropriate, considers that the person or persons concerned is or are obligated under the interpretations in § 727.4 (a) and (b) of section 4 (d) (1) or section 4 (d) (3) of the Universal Militay Training and Service Act, and in which service by the person or persons concerned in a reserve component is considered in the best interests of the service concerned, the Chief of Naval Personnel or the Commandant of the Marine Corps, as appropriate, shall effect, direct, or initiate proper administrative action to effect separation of each person concerned from his then current status, accompanied by immediate transfer in an appropriate rate to a reserve component.

FRANCIS P. WHITEHAIR,
Acting Secretary of the Navy.

OCTOBER 10, 1952.

[F. R. Doc. 52-11441; Filed, Oct. 21, 1952; 8:55 a. m.]

TITLE 32A—NATIONAL DEFENSE, APPENDIX

Chapter III—Office of Price Stabilization, Economic Stabilization Agency

[Ceiling Price Regulation 22, Supplementary Regulation 37]

CPR 22—MANUFACTURERS' GENERAL CEILING PRICE REGULATION

SR 37—ADJUSTED CEILING PRICES FOR MANUFACTURERS OF CERTAIN ASBESTOS CEMENT PRODUCTS

Pursuant to the Defense Production Act of 1950, as amended, Executive Order 10161, and Economic Stabilization General Order No. 2, this Supplementary Regulation 37 to Ceiling Price Regulation 22 is hereby issued.

STATEMENT OF CONSIDERATIONS

This supplementary regulation to Ceiling Price Regulation 22 (CPR 22) adjusts ceiling prices for sales by their manufacturers, of the following asbestos cement products: Asbestos cement siding and clapboards, asbestos cement roofing shingles, asbestos cement flat sheets, asbestos cement corrugated sheets, and asbestos cement accessories to the above. Ceiling prices for these products are established by CPR 22, and all the manufacturers in the industry have filed under that regulation. However, the CPR 22 ceiling prices for the major producers varied by less than one percent from their GCPR ceiling prices, and so these producers retained their GCPR ceilings as they are permitted to do under section 26 of CPR 22. Other members of the industry have also sold at these prices even though some producers have been able to establish higher ceilings under CPR 22.

This action establishes its adjustment by relation to the GCPR prices, which are the actual selling prices for the reason given above. The adjusted ceiling prices are 105.5 percent of the GCPR prices, but are otherwise appropriately subject to the provisions of CPR 22 except as to the changed price. Further, the relief here provided extends to all companies regardless of size, for which reason this supplementary regulation also supersedes section 1 of CPR 22, which permitted smaller companies to use the GCPR.

An industry earnings survey was made at the request of the Industry Advisory Committee of the Asbestos Cement industry. In accordance with the prescribed procedures, earnings, cost and net sales data were obtained from a sample of the industry, as described below. The data covered the four-year base period 1946 through 1949, and the "current" accounting year from April 1, 1951 through March 30, 1952.

The conclusions reached from the survey were based upon complete returns from seven companies in the industry, representing three single line and four multi line producers. The producers were diversified as to geographical location and account for approximately 72 percent of the industry's total production. The price adjustment provided by this supplementary regulation is based upon the amount of profit restoration to which this industry is entitled under the Earnings Standard. This standard requires a price adjustment for an industry if its current earnings fall below 85 percent of the average earnings of the three best of the four years 1946 through 1949, adjusted to reflect increases in net worth. The comparison between such base period earnings and current earnings revealed a significant decrease in earnings caused mainly by greatly increased costs in imported asbestos fibre, and to a lesser extent by increased costs in labor and freight. Since this industry would also be entitled to a price adjustment on increased costs occurring for the period from April 1, 1952 until the survey was completed in mid-September, 1952, these increased costs were also taken into account to determine the current net profit of the industry. The survey disclosed that an increase of 5.5 percent of ceiling prices was required under the industry earnings standard to restore earnings to 85 percent of the level of the three best base period years. The percentage adjustment here provided may be applied by each firm in this industry to its ceiling prices established by the General Ceiling Price Regulation of January 26, 1951.

The ceiling prices established by this supplementary regulation may not be adjusted pursuant to other regulations which provide adjustments reflecting increased outbound transportation rates, such as Supplementary Regulations 28 and 35 to CPR 22 and Supplementary Regulations 106 and 122 to the GCPR. The ceiling prices established by this supplementary regulation have been calculated to provide relief from increased transportation costs, as well as other increased costs experienced by the industry. Therefore permitting further adjustment under the transportation pass-through regulations would be to allow a double adjustment for the same cost increases. The ceiling prices established herein also reflect increased packaging costs due to recent increases in metals costs. Therefore provision is made that a seller covered may elect to adjust his ceiling prices under this supplementary regulation or under General Overriding Regulation 35, but not under both regulations. This avoids any possibility that a double ceiling price adjustment might be made on the basis of the metals costs increases.

In the judgment of the Director of Price Stabilization, the provisions of this supplementary regulation are generally

fair and equitable and are necessary to effectuate the purposes of Title IV of the Defense Production Act of 1950, as amended.

So far as practicable, the Director of Price Stabilization gave due consideration to the national effort to achieve maximum production in furtherance of the objectives of the Defense Production Act of 1950, as amended, and to relevant factors of general applicability.

In the formulation of this supplementary regulation, there has been consultation with industry representatives, including trade association representatives to the extent practicable, and consideration has been given to their recommendations.

REGULATORY PROVISIONS

Sec.
1. What this supplementary regulation does.
2. Coverage.
3. Ceiling prices.
4. Relation to other regulations.

AUTHORITY: Sections 1 to 4 issued under sec. 704, 64 Stat. 816, as amended, 50 U. S. C. App Sup. 2154. Interpret or apply Title IV, 64 Stat. 803, as amended; 50 U. S. C. App. Sup. 2101–2110, E. O. 10161, Sept. 9, 1950, 15 F. R. 6105; 3 CFR 1950 Supp.

SECTION 1. *What this supplementary regulation does.* This supplementary regulation establishes ceiling prices for sales by manufacturers of asbestos cement siding and clapboards, asbestos cement roofing shingles, asbestos cement flat sheets, asbestos cement corrugated sheets, and asbestos cement accessories to the above. These manufacturers are now subject to the provisions of Ceiling Price Regulation 22 (CPR 22). The method employed by this supplementary regulation is to apply a uniform percentage adjustment to the General Ceiling Price Regulation (GCPR) ceiling prices of the commodities covered. The adjusted ceiling prices may be rounded out in accordance with the provisions of CPR 22, section 25.

SEC. 2. *Coverage*—(a) *Persons covered.* This supplementary regulation applies to you if you are a manufacturer of any commodity named in paragraph (b) of this section and establishes your ceiling prices for your sales of such commodities. Except to the extent that they are modified by or are inconsistent with the provisions of this supplementary regulation, all provisions of CPR 22 shall continue to be applicable to you.

(b) *Commodities covered.* This supplementary regulation covers asbestos cement siding and clapboards, asbestos cement roofing shingles, asbestos cement flat sheets, asbestos cement corrugated sheets, and asbestos cement accessories to the above.

SEC. 3. *Ceiling prices.* (a) If you are a manufacturer of asbestos cement siding and clapboards, asbestos cement roofing shingles, asbestos cement flat sheets, asbestos cement corrugated sheets, or asbestos cement accessories to the above, your ceiling price for each such commodity to your largest buying class of purchaser is your GCPR ceiling price for that commodity increased by 5.5 percent (i. e., 105.5 percent of your GCPR ceiling price). As used in this supplementary regulation, the term "your GCPR ceiling price" means your ceiling price as established under sections 3, 4, 6 or 7 of the GCPR before any adjustments which have been or may be established, granted or computed under any adjustment provision of any applicable OPS regulation.

(b) Your ceiling price for sale of each of the above commodities to your largest buying class of purchaser must be consistent in every respect with your CPR 22 ceiling price; that is, it must carry all customary delivery terms, cash, trade and volume discounts, allowances, premiums and extras, deductions, guarantees, servicing terms and other terms and conditions of sale.

(c) Your ceiling price for sale of each of the above commodities to each of your other classes of purchasers is determined by applying your price differentials established under CPR 22. For each class of purchasers you must maintain all customary delivery terms, cash, trade and volume discounts, allowances, premiums and extras, deductions, guarantees, and other terms and conditions of sale.

(d) If you did not have a GCPR ceiling price for any of the above commodities which you began to sell before the effective date of this supplementary regulation, but had established the ceiling price under sections 32, 33, or 34 of CPR 22, your ceiling price for that commodity is determined as follows:

(1) If your ceiling price was determined by reference to the ceiling price of another commodity manufactured by you or by a competitor, you shall redetermine your ceiling price under this supplementary regulation by use of the same method (i. e., by relation to a reference commodity), except that you must use as the ceiling price of the reference commodity its ceiling price under this supplementary regulation. You are not required to report such redeterminations of ceiling prices.

(2) If you are unable to redetermine your ceiling price under subparagraph (1) of this paragraph, you may elect either to maintain your present ceiling price or to apply to the Director of Price Stabilization for the establishment of a new ceiling price in accordance with the provisions of section 34 of CPR 22.

SEC. 4. *Relation to other regulations*—(a) *Relation to CPR 22.* Notwithstanding any provisions of CPR 22 or of any regulation to the contrary, the provisions of this supplementary regulation are mandatory subject only to the limitations found in paragraph (c) of this section. You must apply this supplementary regulation to all commodities covered herein which you manufacture. To this extent the provisions of section 1 of CPR 22 are superseded. The establishment of ceiling prices for commodities covered herein does not affect the applicability of CPR 22 or any other regulation which may be appropriate to any other commodities which you manufacture.

(b) *Relation to regulations providing adjustments reflecting increased outbound transportation rates.* You may not adjust ceiling prices established under this supplementary regulation pursuant to other regulations which provide adjustments reflecting increased outbound transportation rates, such as Supplementary Regulations 28 and 35 to CPR 22 and Supplementary Regulations 106 and 122 to the GCPR. This prohibition is made because increases in costs caused by increased outbound transportation rates were taken into consideration in fixing the amount of the ceiling price adjustment provided by this supplementary regulation.

(c) *Relation to SR's 17, 18, 28 and 35 to CPR 22, SR's 106 and 122 to the GCPR, GOR 10, GOR 20, GOR 21, GOR 29 and GOR 35.* (1) Notwithstanding any provision of this supplementary regulation, you may elect to use Supplementary Regulation 17 (SR 17) to CPR 22, Supplementary Regulation 18 (SR 18) to CPR 22, General Overriding Regulation 10 (GOR 10), General Overriding Regulation 20 (GOR 20), General Overriding Regulation 21 (GOR 21), General Overriding Regulation 29 (GOR 29), or General Overriding Regulation 35 (GOR 35), to establish your ceiling prices for commodities covered by this supplementary regulation. If you so elect, you may not use this supplementary regulation.

(2) If prior to the effective date of this supplementary regulation you established ceiling prices for the commodities covered by this supplementary regulation under SR's 17 or 18 to CPR 22, GOR 10, GOR 20, GOR 21, GOR 29, or GOR 35, you may elect to use ceiling prices so established or ceiling prices established under this supplementary regulation, but you may not use both.

(3) You may, although you use this supplementary regulation, use SR's 17 or 18 to CPR 22, SR's 28 and 35 to CPR 22, SR's 106 and 122 to the GCPR, GOR 10, GOR 20, GOR 21, GOR 29, or GOR 35 to establish your ceiling prices for commodities not covered by this supplementary regulation.

Effective date. This supplementary regulation shall become effective October 21, 1952.

TIGHE E. WOODS,
Director of Price Stabilization.

OCTOBER 21, 1952.

[F. R. Doc. 52-11492; Filed, Oct. 21, 1952; 4:00 p. m.]

Chapter VI—National Production Authority, Department of Commerce

[NPA Order M-80, Amdt. 3, October 21, 1952]

M-80—IRON AND STEEL—ALLOYING MATERIALS AND ALLOY PRODUCTS

ALLOY IRON

This amendment is found necessary and appropriate to promote the national defense and is issued pursuant to the Defense Production Act of 1950, as amended. In the formulation of this amendment, consultation with industry representatives has been rendered impracticable due to the need for immediate action and because the amendment affects many different industries.

This amendment affects NPA Order M-80 as last amended by Amendment 2 of August 25, 1952, by amending the defi-

nition of alloy products appearing in paragraph (d) of section 2, and by adding a new subparagraph (6) to paragraph (d) of section 2 containing a definition of alloy iron.

1. Section 2 (d) is amended to read as follows:

(d) "Alloy product" means and includes those kinds of steel or iron hereafter defined as "alloy steel," "alloy iron," "stainless steel," "low-alloy high-strength steel," or "tool steel," and "nonferrous wrought or cast alloys," including high temperature heat- and corrosion-resisting alloys, and nickel anodes:

2. Section 2 (d) (6) is added as follows:

(6) "Alloy iron" means any iron (cast or pig) containing one or more of the elements defined in List I of this order in any amount specified or known which have been added to obtain a desired alloying effect.

(64 Stat. 816, Pub. Law 429, 82d Cong.; 50 U. S. C. App. Sup. 2154)

This amendment shall take effect October 21, 1952.

NATIONAL PRODUCTION AUTHORITY,
By GEORGE W. AUXIER,
Executive Secretary.

[F. R. Doc. 52-11491; Filed, Oct. 21, 1952; 10:39 a. m.]

TITLE 42—PUBLIC HEALTH

Chapter I—Public Health Service, Federal Security Agency

PART 21—COMMISSIONED OFFICERS

PRESCRIPTION OF NUMBERS IN GRADE

Section 21.111 of Subpart G is amended to read as follows:

§ 21.111 *Prescription of numbers in grade.* The following maximum number of officers is authorized to be on active duty in the Regular Corps in each of the grades from the junior assistant grade to the director grade, inclusive, during the fiscal year beginning July 1, 1952, and ending June 30, 1953:

Director grade	240
Senior grade	450
Full grade	415
Senior assistant grade	335
Assistant grade	60
Junior assistant grade	0

(Sec. 206, 58 Stat. 694, as amended; 42 U. S. C. and Sup. 207)

This amendment shall be effective as of July 1, 1952.

[SEAL] W. PALMER DEARING,
Acting Surgeon General.

Approved: October 15, 1952.

JOHN L. THURSTON,
Acting Federal Security Administrator.

[F. R. Doc. 52-11430; Filed, Oct. 21, 1952; 8:53 a. m.]

TITLE 49—TRANSPORTATION

Chapter I—Interstate Commerce Commission

PART 120—ANNUAL, SPECIAL OR PERIODICAL REPORTS

REPORT OF SOURCE AND APPLICATION OF FUNDS; RAILROADS

At a session of the Interstate Commerce Commission, Division 1, held at its office in Washington, D. C., on the 30th day of September A. D. 1952.

The matter of source and application of funds during the year 1951 being under consideration: *It is ordered*, That

§ 120.11d *Report of source and application of funds; railroads.* All steam railroads of class I (except switching and terminal companies) subject to the provisions of section 20, part 1, of the Interstate Commerce Act, are hereby required to file a special report of Statement of Source and Application of Funds. During the year 1951, in the form and in accordance with instructions thereon, which is attached hereto and made a part hereof.[1] Such report shall be filed for the year ended December 31, 1951, in duplicate, in the Bureau of Transport Economics and Statistics, Interstate Commerce Commission, Washington 25, D. C., on or before 60 days after the date of this section.

(Sec. 12, 24 Stat. 383, as amended; sec. 201, 54 Stat. 933; 49 U. S. C. 12, 904)

It is further ordered, That a copy of this order and the form pertaining thereto, shall be served upon every class I railroad (except switching and terminal companies) subject to section 20, part 1, of the Interstate Commerce Act, and upon every receiver, trustee, executor, administrator, or assignee of any such steam railroad; and notice of this order shall be given to the general public by depositing a copy thereof in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director of the Division of the Federal Register.

Objections may be filed. Any interested party may on or before 30 days after the date of this order, file with the Commission a written statement of reasons why the said order should not become effective as provided above. Unless otherwise ordered after consideration of such objections, the said order shall become effective as herein ordered.

By the Commission, Division 1.

[SEAL] GEORGE W. LAIRD,
Acting Secretary.

[F. R. Doc. 52-11448; Filed, Oct. 21, 1952; 8:56 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF THE TREASURY

Bureau of Internal Revenue

[26 CFR Part 29]

INCOME TAX; TAXABLE YEARS BEGINNING AFTER DECEMBER 31, 1941

NOTICE OF PROPOSED RULE MAKING

Notice is hereby given, pursuant to the Administrative Procedure Act, approved June 11, 1946, that the regulations set forth in tentative form below are proposed to be prescribed by the Commissioner of Internal Revenue, with the approval of the Secretary of the Treasury. Prior to the final adoption of such regulations, consideration will be given to any data, views, or arguments pertaining thereto which are submitted in writing in duplicate to the Commissioner of Internal Revenue, Washington 25, D. C., within the period of 30 days from the date of publication of this notice in the FEDERAL REGISTER. The proposed regulations are to be issued under the authority contained in sections 62 and 3791 of the Internal Revenue Code (53 Stat. 32, 467; 26 U. S. C. 62, 3791).

[SEAL] JOHN B. DUNLAP,
Commissioner of Internal Revenue.

In order to conform Regulations 111 (26 CFR Part 29) to the provisions of section 327 (relating to capital gains and ordinary losses of dealers in securities) of the Revenue Act of 1951, approved October 20, 1951, such regulations are hereby amended as follows:

PARAGRAPH 1. There is inserted immediately preceding § 29.117-1 the following:

SEC. 327. DEALERS IN SECURITIES—CAPITAL GAINS AND ORDINARY LOSSES (REVENUE ACT OF 1951, APPROVED OCTOBER 20, 1951).

Effective with respect to sales or exchanges made after the expiration of the thirtieth day after the date of the enactment of this Act, section 117 is hereby amended by adding at the end thereof the following new subsection:

(n) *Dealers in securities*—(1) *Capital gains.* Gain by a dealer in securities from the sale or exchange of any security shall in no event be considered as gain from the sale or exchange of a capital asset unless—

(A) The security was, prior to the expiration of the thirtieth day after the date of its acquisition or after the date of the enactment of the Revenue Act of 1951 (whichever is the later), clearly identified in the dealer's records as a security held for investment; and

(B) The security was not, at any time after the expiration of such thirtieth day, held by such dealer primarily for sale to customers in the ordinary course of his trade or business.

(2) *Ordinary losses.* Loss by a dealer in securities from the sale or exchange of any

[1] Filed as part of original document.

security shall, except as otherwise provided in subsection (1) (relating to bond, etc., losses of banks), in no event be considered as loss from the sale or exchange of property which is not a capital asset if at any time after the thirtieth day following the date of the enactment of the Revenue Act of 1951 the security was clearly identified in the dealer's records as a security held for investment.

(3) *Definition of security.* For the purposes of this subsection the term "security" means any share of stock in any corporation, certificate of stock or interest in any corporation, note, bond, debenture, or evidence of indebtedness, or any evidence of an interest in or right to subscribe to or purchase any of the foregoing.

PAR. 2. Section 29.117–1, as amended by Treasury Decision 5893, approved April 4, 1952, is further amended by adding at the end of paragraph (k) which commences with the words "See section 23 (g) and (k)", the following new sentence: "See also section 117 (n) and § 29.117–12 for the determination of whether or not gains from the sale or exchange of securities by a dealer in securities shall be treated as capital gains, or whether losses from such sales or exchanges shall be treated as ordinary losses."

PAR. 3. There is inserted immediately after § 29.117–10, as added by Treasury Decision 5881, approved February 11, 1952, the following new section:

§ 29.117–12 *Dealers in securities*—(a) *Capital gain.* Effective with respect to sales or exchanges made on or after November 20, 1951, gain by a dealer in securities from the sale or exchange of a security shall in no event be considered to be gain from the sale or exchange of a capital asset unless:

(1) The security is, prior to the expiration of the thirtieth day after the date of its acquisition or of the thirtieth day after October 20, 1951, whichever is later, clearly identified in the dealer's records as a security held for investment; and

(2) The security is not, at any time after the expiration of such thirtieth day, held by the dealer primarily for sale to customers in the ordinary course of his trade or business.

This provision is applicable only in the case where gain from the sale or exchange of a security would, but for such provision, be considered capital gain. Thus, if the sale of a security by a dealer would, but for section 117 (n) (1), be considered to constitute the sale of a security held for investment, gain from such sale will in no event be considered to be capital gain unless the security has been properly identified within the 30-day period in the dealer's records as being held for investment and such security is not at any time after the expiration of the 30-day period held by the dealer primarily for sale to customers in the ordinary course of his trade or business. However, the mere fact that a security which is actually held by a dealer for sale to customers in the ordinary course of his trade or business is identified as a security held for investment will not in and of itself cause the gain from the sale of the security to be treated as capital gain whether the security is sold within the 30-day period or after such period.

(b) *Ordinary loss.* (1) Effective with respect to sales or exchanges made on or after November 20, 1951, loss by a dealer in securities from the sale or exchange of a security shall in no event be considered to be loss from the sale or exchange of property which is not a capital asset if at any time after November 19, 1951, the security has been clearly identified in the dealer's records as a security held for investment. Once a security has been identified after November 19, 1951, as being held for investment, a loss on the subsequent disposition of such security shall in no event be considered an ordinary loss but shall be considered as one arising from the sale or exchange of a capital asset.

(2) Nothing in this paragraph shall be taken to restrict or prohibit the application of section 117 (i), without regard to the manner in which the securities described therein have been identified in the records, to the net capital losses of a bank from sales or exchanges of bonds and certain other securities.

(c) *General.* (1) For the purpose of this section the term "security" means any share of stock in any corporation, any certificate of stock or interest in any corporation, any note, bond, debenture, or other evidence of indebtedness, or any evidence of an interest in, or right to subscribe to or purchase, any of the foregoing.

(2) A security is clearly identified in the dealer's records as a security held for investment when there is an accounting separation of such security from other securities. Accounting separation will be satisfied by (i) making appropriate entries in the dealer's books of account to distinguish the security from inventories and to carry it as an investment and (ii) indicating with such entries, to the extent feasible, the individual serial number of, or other characteristic symbol imprinted upon, the individual security.

(3) In computing the 30-day period within which the security must be clearly identified, and after which such security may not be held primarily for sale to customers in the ordinary course of the trade or business, the first day of such period is the day following the date of acquisition. Thus, in the case of a security acquired on March 18, 1952, the 30-day period expires at midnight on April 17, 1952.

(4) For definition of a dealer in securities, see § 29.22 (c)–5.

[F. R. Doc. 52–11442; Filed, Oct. 21, 1952; 8:55 a. m.]

DEPARTMENT OF AGRICULTURE

Production and Marketing Administration

[7 CFR Part 976]

[Docket No. AO–237–A1]

HANDLING OF MILK IN FORT SMITH, ARKANSAS, MARKETING AREA

DECISION WITH RESPECT TO PROPOSED MARKETING AGREEMENT AND PROPOSED AMENDMENT TO ORDER

Pursuant to the provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.), and the applicable rules of practice and procedure, as amended, governing proceedings to formulate marketing agreements and marketing orders (7 CFR Part 900), a public hearing was conducted at Fort Smith, Arkansas, on October 8, 1952, pursuant to notice thereof which was issued on October 2, 1952 (17 F. R. 8923, 8985).

The material issues of record related to a proposal that the price of Class I milk be increased for a limited period of time in view of drought conditions, and the necessity for action with respect to this issue which would require the omission of a recommended decision.

Findings and conclusions. 1. Drought conditions that have prevailed in the Fort Smith area require an increase in the price of Class I milk for the months of November 1952 through March 1953; for the months of November 1952 through January 1953 the amount of the increase should be 40 cents per hundredweight, and for the months of February and March 1953 it should be 20 cents per hundredweight.

The production area from which the Fort Smith market draws its milk supplies experienced drought conditions and excessive temperatures which affected extensive areas of the southwest during the summer months of 1952. Rainfall at Fort Smith from June 1 through September 25 was less than 50 percent of normal. Temperatures in excess of 90 degrees were shown for 79 of the 92 days in June, July, and August. These conditions have resulted in severe reductions in the pasture and feed crops on which milk producers rely. They have been required to feed their milk cows hay and forage during the normal pasture season when production of such roughage is only a fraction of normal. As a result they must import substantial amounts of hay from more favored areas, thus experiencing direct out-of-pocket costs which are not normal for producers in this area. The area has officially been declared a disaster area and is eligible to participate in the program of the Department for movement of hay from areas not affected by drought. Nevertheless, the increased costs to dairymen are so substantial as to create a critical situation with respect to production of milk in the coming winter months.

The order for the Fort Smith market became partially effective August 1, 1952 and fully effective September 1 of this year. Consequently data comparing milk supplies with those of previous periods are not available. Preliminary data for September indicates that approximately 90 percent of producer supplies were needed for fluid use.

A 40 cent premium being paid by Muskogee handlers aligns prices in that market with those of the Tulsa market, for which an increase of 40 cents for the months of September through December 1952 was effected by a recent amendment to the Tulsa order. This increase was based on drought conditions in the Tulsa area similar to those that have prevailed in the Fort Smith area. An increase of 40 cents in the Class I differential of the Fort Smith order will restore the alignment between prices of

the Tulsa, Muskogee, and Fort Smith markets which was contemplated when the Fort Smith order was issued.

It is concluded that an increase of this amount should be effective for the months of November 1952 through January 1953 and that for the months of February and March 1953 the Class I differential should be increased 20 cents. The feeding season in the Fort Smith area extends until at least mid-March. Increases at the these rates for a five-month period will result in Fort Smith producers receiving increased returns for the out-of-pocket costs experienced over the entire feeding season comparable to those provided by the action taken in the Tulsa market.

While these changes in the Class I differential of the Fort Smith order are appropriate for all milk priced under the order, their application in the computation of obligations of handlers subject to other orders who may dispose of Class I milk in the Fort Smith order would raise some problems for which this record does not provide an adequate basis for a complete solution. Accordingly it is provided that these temporary changes in differentials should not apply in the computation of such obligations.

2. The due and timely execution of the function of the Secretary under the act imperatively and unavoidably requires the omission of a recommended decision by the Assistant Administrator, Production and Marketing Administration, and the opportunity for exception thereto, on the above issues.

The conditions complained of are such that it is urgent that remedial action be taken as soon as possible. Delay beyond the minimum time required to make the attached order effective would defeat the purpose of such amendment. Accordingly, the time necessarily involved in the preparation, filing, and publication of a recommended decision, and exceptions thereto, would make such relief ineffective. The propriety of omitting the recommended decision and opportunity for filing exceptions thereto with respect to all proposals considered was indicated on the record by all interested parties, who waived the opportunity to file briefs on the record of the hearing.

General findings. (a) The proposed marketing agreement and the order as hereby proposed to be amended, and all of the terms and conditions thereof, will tend to effectuate the declared policy of the act;

(b) The parity prices of milk as determined pursuant to section 2 of the act are not reasonable in view of the price of feeds, available supplies of feeds, and other economic conditions which affect market supply of and demand for milk in the marketing area, and the minimum prices specified in the proposed marketing agreement and in the order, as hereby proposed to be amended, are such prices as will reflect the aforesaid factors, insure a sufficient quantity of pure and wholesome milk, and be in the public interest; and

(c) The proposed marketing agreement and the order, as hereby proposed to be amended, will regulate the handling of milk in the same manner as, and will be applicable only to persons in the respective classes of industrial and commercial activity, specified in a marketing agreement upon which a hearing has been held.

Determination of representative period. The month of September 1952 is hereby determined to be the representative period for the purpose of ascertaining whether the issuance of an order amending the order regulating the handling of milk in the Fort Smith, Arkansas, marketing area in the manner set forth in the attached amending order is approved or favored by producers who during such period were engaged in the production of milk for sale in the marketing area specified in such order.

Marketing agreement and order. Annexed hereto and made a part hereof are two documents entitled "Marketing Agreement Regulating the Handling of Milk in the Fort Smith, Arkansas, Marketing Area," and "Order Amending the Order Regulating the Handling of Milk in the Fort Smith, Arkansas, Marketing Area," which have been decided upon as the detailed and appropriate means of effectuating the foregoing conclusions. These documents shall not become effective unless and until the requirements of § 900.14 of the rules of practice and procedure, as amended, governing proceedings to formulate marketing agreements and orders have been met.

It is hereby ordered, That all of this decision, except the attached marketing agreement, be published in the FEDERAL REGISTER. The regulatory provisions of said marketing agreement are identical with those contained in the order as hereby proposed to be amended by the attached order which will be published with this decision.

This decision filed at Washington, D. C., this 17th day of October 1952.

[SEAL] C. J. McCORMICK,
Acting Secretary of Agriculture.

Order[1] Amending the Order Regulating the Handling of Milk in the Fort Smith, Arkansas, Marketing Area

§ 928.0 *Findings and determinations.* The findings and determinations hereinafter set forth are supplementary and in addition to the findings and determinations previously made in connection with the issuance of the aforesaid order and all of said previous findings and determinations are hereby ratified and affirmed, except insofar as such findings and determinations may be in conflict with findings and determinations set forth herein.

(a) *Findings upon the basis of the hearing record.* Pursuant to the provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.), and the applicable rules of practice and procedure, as amended, governing the formulation of marketing agreements and marketing orders (7 CFR Part 900), a public hearing was held upon certain proposed amendments to the tentative marketing agreement and to the order regulating the handling of milk in the Fort Smith, Arkansas, marketing area. Upon the basis of the evidence introduced at such hearing and the record thereof, it is found that:

(1) The said order, as hereby amended, and all of the terms and conditions thereof, will tend to effectuate the declared policy of the act;

(2) The parity prices of milk as determined pursuant to section 2 of the act are not reasonable in view of the price of feeds, available supplies of feeds, and other economic conditions which affect market supply of and demand for milk in the marketing area, and the minimum prices specified in the order as hereby amended, are such prices as will reflect the aforesaid factors, insure a sufficient quantity of pure and wholesome milk, and be in the public interest; and

(3) The said order as hereby amended, regulates the handling of milk in the same manner as, and is applicable only to persons in the respective classes of industrial and commercial activity, specified in a marketing agreement upon which a hearing has been held.

Order relative to handling. It is therefore ordered that on and after the effective date hereof the handling of milk in the Fort Smith, Arkansas, marketing area shall be in conformity to and in compliance with the terms and conditions of the aforesaid order as hereby amended, and the aforesaid order is hereby amended as follows:

1. In § 976.51 (a) change the period at the end of the sentence to a colon and add "*And provided further,* That, except for the purpose of computations pursuant to § 976.61 (b), the amount to be added to the basic formula price for the months of November 1952 through January 1953 shall be $2.25 in lieu of $1.85, and for the months of February and March 1953 such amount shall be $2.05 in lieu of $1.85."

Order of Secretary Directing That Referendum Be Conducted Among Producers Supplying Milk to Fort Smith, Arkansas, Marketing Area, and Designation of Agent To Conduct Such Referendum

Pursuant to section 8c (19) of the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 608c (19)), it is hereby directed that a referendum be conducted among the producers (as defined in the order regulating the handling of milk in the Fort Smith, Arkansas, marketing area) who, during the month of September 1952, were engaged in the production of milk for sale in the marketing area specified in the aforesaid order to determine whether such producers favor the issuance of the order which is a part of the decision of the Secretary of Agriculture filed simultaneously herewith.

The month of September 1952 is hereby determined to be the representative period for the conduct of such referendum.

[1] This order shall not become effective unless and until the requirements of § 900.14 of the rules of practice and procedure, as amended, governing proceedings to formulate marketing agreements and orders have been met.

Wendell M. Costello is hereby designated agent of the Secretary to conduct such referendum in accordance with the procedure for the conduct of referenda to determine producer approval of milk marketing orders as published in the FEDERAL REGISTER on August 10, 1950 (15 F. R. 5177), such referendum to be completed on or before the 15th day from the date this referendum order is issued.

[F. R. Doc. 52-11450; Filed, Oct. 21, 1952; 8:56 a. m.]

NOTICES

DEPARTMENT OF THE TREASURY

Bureau of Internal Revenue

[Operations Reorganization Order No. 8]

CHICAGO DISTRICT: DISTRICT COMMISSIONER

TERMINATION OF INTERIM DELEGATION OF AUTHORITY OVER OPERATIONS IN INDIANA AND OTHER STATES

Pursuant to the authority vested in me as Assistant Commissioner of Internal Revenue, it is directed that:

1. Effective as of the date of the establishment of the office of District Commissioner for the Louisville District, the authority vested in the District Commissioner for the Chicago District by Commissioner's Reorganization Order No. Chi-2, dated May 15, 1952, shall be, and the same is hereby terminated with respect to the State of Indiana.

2. Effective as of the date of the establishment of the office of District Commissioner for the District which shall include the States of Minnesota, North Dakota, and South Dakota, the interim authority vested in the District Commissioner for the Chicago District by Commissioner's Reorganization Order No. Chi-2 shall be, and the same is hereby terminated with respect to such States.

Dated: October 9, 1952.

[SEAL] JUSTIN F. WINKLE,
Assistant Commissioner.

[F. R. Doc. 52-11411; Filed, Oct. 21, 1952; 8:48 a. m.]

[Operations Reorganization Order No. At-1]

ATLANTA DISTRICT: DISTRICT COMMISSIONER

INTERIM DELEGATION OF AUTHORITY PENDING REORGANIZATION OF ADDITIONAL DISTRICT OFFICES

Pursuant to the authority vested in me as Assistant Commissioner of Internal Revenue, it is directed that:

1. In addition to the authority delegated to the District Commissioner for the District by Operations Reorganization Order No. 3, the District Commissioner for the Atlanta District is hereby vested with general supervision over the operations of the following offices with respect to areas outside of the States of Florida, Georgia, North Carolina, and South Carolina:

(a) The Atlanta District Intelligence Division (comprised of the States of South Carolina, Georgia, Florida, and Alabama);

(b) The Alcohol and Tobacco Tax Supervisory District No. 6, (comprised of the States of Alabama, Florida, Georgia, South Carolina);

(c) The Southern District of the Appellate Division (comprised of the States of Alabama, Florida, Georgia, South Carolina and Tennessee), subject, however, to the provisions of Commissioner's Reorganization Order No. 2 (relating to the functions of the Appellate Division).

2. Pending the issuance of further instructions, officers, agencies and employees of the offices listed in paragraph 1 shall continue to perform the functions they were authorized to perform immediately prior to the effective date of this order in accordance with authorized regulations and procedures in effect at such time.

3. This order shall be effective as of 12:01 a. m., October 23, 1952: *Provided*, That the interim authority herein delegated to the District Commissioner with respect to any territory located outside of his District shall terminate upon the effective date of the establishment of an office of District Commissioner for the District which shall include such territory.

Dated: October 9, 1952.

[SEAL] JUSTIN F. WINKLE,
Assistant Commissioner.

[F. R. Doc. 52-11409; Filed, Oct. 21, 1952; 8:47 a. m.]

[Operations Reorganization Order No. Balt-2]

BALTIMORE DISTRICT: DISTRICT COMMISSIONER AND DIRECTOR OF INTERNAL REVENUE

TERMINATION OF INTERIM DELEGATION OF AUTHORITY WITH RESPECT TO OPERATIONS IN NORTH CAROLINA AND DELAWARE

Pursuant to the authority vested in me as Assistant Commissioner of Internal Revenue, it is directed that:

1. Effective as of the date of the establishment of the office of District Commissioner for the Atlanta District, the authority vested in the District Commissioner for the Baltimore District by Operations Reorganization Order No. Balt-1, dated September 4, 1952, shall be, and the same is hereby terminated with respect to the State of North Carolina.

2. Effective as of the date of the establishment of the office of District Commissioner for the District which shall include the State of Delaware, the interim authority vested in the District Commissioner for the Baltimore District and the Director of Internal Revenue, Baltimore by Operations Reorganization Order No. Balt-1, shall be, and the same is hereby terminated with respect to such State.

Dated: October 9, 1952.

[SEAL] JUSTIN F. WINKLE,
Assistant Commissioner.

[F. R. Doc. 52-11408; Filed, Oct. 21, 1952; 8:47 a. m.]

Fiscal Service, Bureau of Accounts

[Dept. Circ. 570, Rev. Apr. 20, 1943, 1952, 80th Supp.]

NORTH AMERICAN FIRE & MARINE REINSURANCE CORP., NEW YORK, N. Y.

SURETY COMPANIES ACCEPTABLE ON FEDERAL BONDS

OCTOBER 17, 1952.

A Certificate of Authority has been issued by the Secretary of the Treasury to the following company under the act of Congress approved July 30, 1947, 6 U. S. C. secs. 6-13, as a reinsuring company only on Federal bonds. An underwriting limitation of $207,000.00 has been established for the company.

NAME OF COMPANY, LOCATION OF PRINCIPAL EXECUTIVE OFFICE AND STATE IN WHICH INCORPORATED

NEW YORK

North American Fire & Marine Reinsurance Corp., New York.

[SEAL] JOHN W. SNYDER,
Secretary of the Treasury.

[F. R. Doc. 52-11412; Filed, Oct. 21, 1952; 8:49 a. m.]

Office of the Secretary

[Treasury Department Order No. 150-11]

BUREAU OF INTERNAL REVENUE; REORGANIZATION

ABOLITION OF OFFICES OF COLLECTORS AND DEPUTY COLLECTORS OF FLORIDA, GEORGIA, NORTH CAROLINA, AND SOUTH CAROLINA COLLECTION DISTRICTS; ESTABLISHMENT OF OFFICES OF DISTRICT COMMISSIONER AND DIRECTORS OF INTERNAL REVENUE

By virtue of the authority vested in me as Secretary of the Treasury by Reorganization Plan No. 26 of 1950 and Reorganization Plan No. 1 of 1952, it is ordered as follows:

1. *Abolition of existing offices.* The abolition of the offices of Collector of Internal Revenue and Deputy Collector for the Florida, Georgia, North Carolina, and South Carolina Collection Districts shall become effective as of 12 o'clock midnight, October 22, 1952.

2. *Establishment of District Commissioner.* Effective as of 12:01 a. m., October 23, 1952, there is hereby established an office of District Commissioner of Internal Revenue, which shall be known as the Atlanta District, and which shall be comprised of the States of Florida, Georgia, North Carolina, and South Carolina, and the Canal Zone.

3. *Location of headquarters.* The headquarters office shall be located in the City of Atlanta, Georgia.

4. *Establishment of Offices of Director of Internal Revenue.* Effective as of 12:01 a. m., October 23, 1952, there are hereby created the following offices within the Atlanta District:

(a) Director of Internal Revenue for the Collection District of Florida (as presently constituted). The headquarters of such office shall be located in Jacksonville, Florida and the office shall have the operating title of Director of Internal Revenue, Jacksonville.

(b) Director of Internal Revenue for the Collection District of Georgia (as presently constituted). The headquarters of such office shall be located in Atlanta, Georgia and the office shall have the operating title of Director of Internal Revenue, Atlanta.

(c) Director of Internal Revenue for the Collection District of North Carolina (as presently constituted). The headquarters of such office shall be located in Greensboro, North Carolina and the office shall have the operating title of Director of Internal Revenue, Greensboro.

(d) Director of Internal Revenue for the Collection District of South Carolina (as presently constituted). The headquarters of such office shall be located in Columbia, South Carolina and the office shall have the operating title of Director of Internal Revenue, Columbia.

Dated: October 8, 1952.

[SEAL] JOHN W. SNYDER,
Secretary of the Treasury.

[F. R. Doc. 52-11407; Filed, Oct. 21, 1952; 8:46 a. m.]

[Treasury Department Order No. 150-12]

BUREAU OF INTERNAL REVENUE; REORGANIZATION

ABOLITION OF OFFICES OF COLLECTORS AND DEPUTY COLLECTORS OF INDIANA, KENTUCKY, AND TENNESSEE COLLECTION DISTRICTS; ESTABLISHMENT OF OFFICES OF DISTRICT COMMISSIONER AND DIRECTORS OF INTERNAL REVENUE

By virtue of the authority vested in me as Secretary of the Treasury by Reorganization Plan No. 26 of 1950 and Reorganization Plan No. 1 of 1952, it is ordered as follows:

1. *Abolition of existing offices.* The abolition of the offices of Collector of Internal Revenue and Deputy Collector for the Indiana, Kentucky, and Tennessee Collection Districts shall become effective as of 12 o'clock midnight, October 23, 1952.

2. *Establishment of District Commissioner.* Effective as of 12:01 a. m., October 24, 1952, there is hereby established an office of District Commissioner of Internal Revenue, which shall be known as the Louisville District, and which shall be comprised of the States of Indiana, Kentucky, and Tennessee.

3. *Location of headquarters.* The headquarters office shall be located in the City of Louisville, Kentucky.

4. *Establishment of Offices of Director of Internal Revenue.* Effective as of 12:01 a. m., October 24, 1952, there are hereby created the following offices within the Louisville District:

(a) Director of Internal Revenue for the Collection District of Indiana (as presently constituted). The headquarters of such office shall be located in Indianapolis, Indiana, and the office shall have the operating title of Director of Internal Revenue, Indianapolis.

(b) Director of Internal Revenue for the Collection District of Kentucky (as presently constituted). The headquarters of such office shall be located in Louisville, Kentucky, and the office shall have the operating title of Director of Internal Revenue, Louisville.

(c) Director of Internal Revenue for the Collection District of Tennessee (as presently constituted). The headquarters of such office shall be located in Nashville, Tennessee, and the office shall have the operating title of Director of Internal Revenue, Nashville.

Dated: October 8, 1952.

[SEAL] JOHN W. SNYDER,
Secretary of the Treasury.

[F. R. Doc. 52-11410; Filed, Oct. 21, 1952; 8:48 a. m.]

DEPARTMENT OF THE INTERIOR

Bureau of Land Management

ALASKA

ORDER OF TRANSFER OF JURISDICTION OF INTEREST

OCTOBER 14, 1952.

Whereas, the Office of Territories, Department of the Interior, made application Anchorage 019600, for transfer of jurisdiction of interest to the Office of Territories, under section 7 of the Public Works Act of August 24, 1949 (63 Stat. 629; 48 U. S. C. 486e), in the lands hereinafter described, for a public works project (Kodiak Water and Sewer System, Aaa. 50-A-46), which was approved under section 4 of the act, and

Whereas, notice of the proposed transfer of jurisdiction was published in the FEDERAL REGISTER, September 17, 1952 (17 F. R. 8366), and no protest to the transfer was filed within the time allowed.

Now, therefore, by virtue of the authority contained in section 7 of the Public Works Act of August 24, 1949, supra, and pursuant to section 2.56 of Delegation Order No. 427, of August 16, 1950 (15 F. R. 5641), it is ordered as follows:

Jurisdiction of interest in and to the following described lands located in the East Addition to Kodiak Townsite, Alaska, U. S. Survey No. 2538-(A) is hereby transferred to the Office of Territories, Department of the Interior:

Beginning at Corner Number 3, being the Northwest Corner of United States Land Survey Number 562 (the Erskine Subdivision of Kodiak, Alaska), go East 253.21 feet to a point (being Corner Number 18 of U. S. Survey Number 2538-B); thence go North 34° 43' West, 709.33 feet to the point of beginning; thence go North 34° 34' West, 1,990.56 feet to a point, thence go North 55° 21' East, 4,300 feet to a point, thence go South 34° 39' East, 1,327.35 feet to a point, thence go South 55° 15' West, 1,501.27 feet to a point, thence go South 34° 46' East, 394.83 feet to a point; thence go South 51° 00' West (along the North Boundary of United States Survey No. 2538-B), 946.64 feet to a point; thence go North 39° 00' West, 17.28 feet to a point; thence go South 41° 00' West, 1,918.57 feet to the point of beginning; thereby comprising a tract of land containing 169.9 acres, more or less.

Any subsequent conveyance which may be made of the lands to a public body under authority of the act of August 24, 1949, supra, the instrument of conveyance shall contain a provision reserving a right-of-way for ditches and canals constructed under authority of the United States, and reserving also to the United States (1) all fissionable source materials in the land, together with the right of the United States to enter upon the land and prospect for, mine and remove such materials in accordance with the act of August 1, 1946 (60 Stat. 755; 43 U. S. C. 1801), (2) all oil and gas and other mineral deposits in the lands together with the rights of the United States, its agents, representatives, lessees or permittees, to prospect for, mine and remove the same under such regulations as the Secretary may prescribe, (3) a right-of-way for the construction of railroads, telegraph and telephone lines in accordance with the act of March 12, 1914 (38 Stat. 305; 48 U. S. C. 305), (4) a right-of-way for roads, highways, tramways, trails, bridges, and appurtenant structures constructed by or under authority of the United States or of any State created out of the Territory of Alaska, in accordance with the act of July 24, 1947 (61 Stat. 418; 48 U. S. C. 321d), and (5) such other reservations, covenants, terms, and conditions as may be deemed proper by the Office of Territories, as well as those which may be required for the protection of the Department of the Interior or any agency thereof.

LOWELL M. PUCKETT,
Regional Administrator.

[F. R. Doc. 52-11399; Filed, Oct. 21, 1952; 8:45 a. m.]

DEPARTMENT OF LABOR

Wage and Hour Division

LEARNER EMPLOYMENT CERTIFICATES

ISSUANCE TO VARIOUS INDUSTRIES

Notice is hereby given that pursuant to section 14 of the Fair Labor Standards Act of 1938, as amended (52 Stat. 1068, as amended; 29 U. S. C. and Sup. 214), and Part 522 of the regulations issued thereunder (29 CFR, Part 522), special certificates authorizing the employment of learners at hourly wage rates lower than the minimum wage rates applicable under section 6 of the act have been

issued to the firms listed below. The employment of learners under these certificates is limited to the terms and conditions therein contained and is subject to the provisions of Part 522. The effective and expiration dates, occupations, wage rates, number or proportion of learners, and learning period for certificates issued under the general learner regulations (§§ 522.1 to 522.14) are as indicated below; conditions provided in certificates issued under special industry regulations are as established in these regulations.

Single Pants, Shirts and Allied Garments, Women's Apparel, Sportswear and Other Odd Outerwear, Rainwear, Robes and Leather and Sheep-Lined Garments Divisions of the Apparel Industry Learner Regulations (29 CFR 522.160 to 522.166, as amended December 31, 1951; 16 F. R. 12043, and June 2, 1952; 17 F. R. 3818).

Alcorn Manufacturing Co., Corinth, Miss., effective 10-13-52 to 4-12-53; 30 learners for expansion purposes (sport shirts).

Allen Garment Co., 706 Nineteenth Avenue N., Nashville, Tenn., effective 10-19-52 to 10-18-53; 10 percent of the productive factory force (sport shirts).

B-J Children's Dress Co., 30 Susquehanna Street, Mauch Chunk, Pa., effective 10-13-52 to 6-4-53; 10 learners (children's dresses) (replacement certificate).

Blue Bell, Inc., Tupelo, Miss., effective 10-13-52 to 10-12-53; 10 percent of the productive factory force (work shirts).

Blue Bell, Inc., Tishomingo County, Belmont, Miss., effective 10-13-52 to 10-12-53; 10 percent of the productive factory force (work pants).

Carthage Corp., Carthage, Miss., effective 10-13-52 to 3-28-53; 50 learners for expansion purposes (men's work pants and ladies' dungarees) (supplemental certificate).

Samuel Dion & Son, Inc., 831 Cherry Street, Philadelphia, Pa., effective 10-7-52 to 10-6-53; four learners (aprons and housedresses).

Elder Manufacturing Co., 7025 Pennsylvania Avenue, St. Louis, Mo., effective 10-8-52 to 10-7-53; 10 percent of the productive factory force (dress and sport shirts).

Holston Manufacturing Corp., Marion, Va., effective 10-18-52 to 10-17-53; 10 percent of the productive factory force (woven cotton and rayon slips).

Industrial Garment Manufacturing Co., 8 North Center Street, Springfield, Ohio, effective 10-13-52 to 10-12-53; 10 percent of the productive factory force (men's cotton work clothes).

Junior Form Lingerie Corp., 428 Morris Avenue, Boswell, Pa., effective 10-17-52 to 10-16-53; 10 percent of the productive factory force (ladies' woven undergarments).

Kennebec Manufacturing Co., Inc., South Gardiner, Maine, effective 10-9-52 to 10-8-53; 10 learners (children's outergarments).

Kentucky Pants Co., 117 North Race Street, Glasgow, Ky., effective 10-13-52 to 4-12-53; 55 learners for expansion purposes (work pants).

Knickerbocker Manufacturing Co., Inc., West Point, Miss., effective 10-8-52 to 10-7-53; 10 percent of the productive factory force engaged in the manufacture of men's woven sleepwear (men's woven sleepwear).

Ann Lee Frocks, 87 Wharf Street, Pittston, Pa., effective 10-13-52 to 10-12-53; 10 percent of the productive factory force or 10 learners, whichever is greater (dresses).

Livingston Shirt Corp., Livingston, Tenn., effective 10-15-52 to 10-14-53; 10 percent of the productive factory force (dress and sport shirts).

R. Lowenbaum Manufacturing Co., Sparta, Ill., effective 10-13-52 to 10-12-53; 10 percent of the productive factory force (dresses.)

The Rauh Co., Ninth and Sycamore Streets, Cincinnati, Ohio, effective 10-15-52 to 10-14-53; 10 percent of the productive factory force (dress and sport shirts).

Rice Stix Factory No. 3, Blytheville, Ark., effective 10-13-52 to 4-12-53; 10 learners for expansion purposes (sport shirts, pajamas).

Rice Stix Factory No. 3, Blytheville, Ark., effective 10-26-52 to 10-25-53; 10 percent of the productive factory force (sport shirts, pajamas).

Rice Stix Factory No. 16, Water Valley, Miss., effective 10-15-52 to 10-14-53; 10 percent of the productive factory force (work pants, shirts, navy chambray shirts).

Rosenau Bros. Inc., Fulton Street, Ephrata, Pa., effective 10-6-52 to 10-5-53; 10 percent of the productive factory force (infants' and children's wear).

Rosenau Bros, Inc., West Bertach Street, Lansford, Pa., effective 10-19-52 to 10-18-53; 10 percent of the productive factory force (children's dresses).

Rosenau Bros, Inc., Main Street, Red Hill, Pa., effective 10-6-52 to 10-5-53; 10 percent of the productive factory force (infants' and children's wear).

Royal Manufacturing Co., Inc., Washington, Ga.; effective 10-16-52 to 10-15-53; 10 percent of the productive factory force (sport shirts).

I. Schneierson & Sons, Inc., 460 Globe Street, Fall River, Mass., effective 10-19-52 to 10-18-53; 10 percent of the productive factory force (women's and children's cotton and rayon underwear).

Shamokin Dress Co., 1012 North Shamokin Street, Shamokin, Pa., effective 10-13-52 to 10-12-53; 10 percent of the productive factory force (dresses).

Stetson Pajama Co., 161 Market Street, Perth Amboy, N. J., effective 10-13-52 to 10-12-53; six learners (men's and ladies' pajamas).

Troutman Shirt Co., Inc., Mooresville, N. C., effective 10-8-52 to 10-7-53; 10 percent of the productive factory force (work shirts).

Vanderbilt Shirt Co., Inc., 29½ Broadway, Asheville, N. C., effective 10-23-52 to 10-22-53; 10 percent of the productive factory force (men's sport shirts).

Hosiery Industry Learner Regulations (29 CFR 522.40 to 522.51, as revised November 19, 1951; 16 F. R. 10733).

Fort Payne Manufacturing Co., Inc., Fort Payne, Ala., effective 10-9-52 to 10-8-53; 5 percent of the productive factory force.

Newland Hosiery Co., Newland, N. C., effective 10-6-52 to 6-5-53; 50 learners for expansion purposes.

Independent Telephone Industry Learner Regulations (29 CFR 522.82 to 522.93, as amended January 25, 1950; 15 F. R. 398).

State Long Distance Telephone Co., Elkhorn, Wis., effective 10-8-52 to 10-7-53.

Knitted Wear Industry Learner Regulations (29 CFR 522.68 to 522.79, as amended January 21, 1952; 16 F. R. 12866).

Knickerbocker Manufacturing Co., Inc., West Point, Miss., effective 10-8-52 to 10-7-53; 5 percent of the productive factory force engaged in the manufacture of men's shorts (men's shorts).

Shoe Industry Learner Regulations (29 CFR 522.250 to 522.260, as amended March 17, 1952; 17 F. R. 1500).

Moran Shoe Co., Ninth and Railroad, Carlyle, Ill., effective 10-10-52 to 10-9-53; 10 percent of the productive factory force.

St. Louis Shoe Manufacturing Corp., New Athens, Ill., effective 10-16-52 to 10-15-53; 10 percent of the productive factory force.

Regulations Applicable to the Employment of Learners (29 CFR 522.1 to 522.14).

Glen L. Evans, Inc., Evans Street and Paynter Avenue, Caldwell, Idaho, effective 10-10-52 to 4-9-53; 30 learners for expansion purposes; fly tiers; 320 hours; 65 cents per hour for the first 160 hours and 70 cents per hour for the remaining 160 hours (fishing tackle).

The following special learner certificate was issued to the school-operated industries listed below:

Sunnydale Academy, P. O. Box 209, Centralia, Mo., effective 9-1-52 to 8-31-53; food manufacturing—food manufacturing, semi-skilled occupations only; 22 learners; 100 hours at 55 cents per hour, 100 hours at 60 cents per hour, 100 hours at 70 cents per hour.

The following special learner certificate was issued in Puerto Rico to the company hereinafter named. The effective and expiration dates, the number of learners, the learner occupations, the length of the learning period and the learner wage rates are indicated, respectively.

Garrou, Inc., Cidra, P. R., effective 10-1-52 to 3-30-53; seven learners; knitters, 480 hours, seamers, 480 hours, menders, 320 hours, examiners, 240 hours; each 30 cents per hour (full fashioned hosiery).

Each certificate has been issued upon the employer's representation that employment of learners at subminimum rates is necessary in order to prevent curtailment of opportunities for employment, and that experienced workers for the learner occupations are not available. The certificates may be cancelled in the manner provided in the regulations and as indicated in the certificates. Any person aggrieved by the issuance of any of these certificates may seek a review or reconsideration thereof within fifteen days after publication of this notice in the FEDERAL REGISTER pursuant to the provisions of Part 522.

Signed at Washington, D. C., this 14th day of October 1952.

MILTON BROOKE,
Authorized Representative of the Administrator.

[F. R. Doc. 52-11400; Filed, Oct. 21, 1952; 8:45 a. m.]

CIVIL AERONAUTICS BOARD

[Docket No. 4052 et al.]

UNITED AIR LINES, INC., ET AL.; REOPENED CERTIFICATE RENEWAL CASE

NOTICE OF HEARING

In the matter of the Reopened Mid-West Certificate Renewal Case for further hearing with respect to service to Fargo, N. Dak., et al.

Pursuant to the provisions of the Civil Aeronautics Act of 1938, as amended, notice is hereby given that a hearing in the above-entitled proceeding is assigned to be held on October 27, 1952, at 10:00 a. m., c. s. t., at the Chamber of Com-

merce, 100 West Tenth Street, Sioux Falls, S. Dak., before Examiner James S. Keith.

Without limiting the scope of the issues presented in said proceeding, particular attention will be directed to the following matters and questions:

1. Do the public convenience and necessity require, and should the Board order, any or all of the following in whole or part:

(a) Amendment of the certificate of United Air Lines, Inc., for route No. 1, so as to include Scottsbluff, Nebr., as an intermediate point;

(b) Amendment of the certificate of Braniff Airways, Inc. for route No. 26, so as to provide service to Fargo, N. Dak., New Ulm, Mankato, and Worthington, Minn., Norfolk, Nebr., and Mitchell, Brookings, and Yankton, S. Dak.;

(c) Amendment of the certificate of Braniff Airways for route No. 48, so as to provide service to Austin, Minn.;

(d) Amendment of the certificate of Wisconsin Central Airlines, Inc., so as to include a new route segment between Minneapolis-St. Paul, Minn., and Des Moines, Iowa, via Austin, Minn., and Mason City and Fort Dodge, Iowa, and a new route segment between Minneapolis-St. Paul, Minn., and Sioux City, Iowa, via Mankato, Fairmont and Worthington, Minn., Docket No. 5574;

(e) Suspension of the authorizations of Braniff Airways, Inc. to serve Mason City, Iowa, on route No. 48 and of Western Air Lines, Inc. to serve Mankato, Minn., on route No. 35.

2. In the event of authorization under 1 (a), (b), (c), and (d) is the carrier authorized fit, willing and able to perform such service.

Notice is further given that any person other than the parties and interveners of record desiring to be heard in this proceeding may file with the Board on or before October 27, 1952, a statement setting forth the issues of fact and of law raised by this proceeding which he desires to controvert, and such person may appear and participate in the hearing in accordance with § 302.14 of the procedural regulations under Title IV of the Civil Aeronautics Act, as amended.

Dated at Washington, D. C., October 16, 1952.

[SEAL] FRANCIS W. BROWN,
Chief Examiner.

[F. R. Doc. 52-11432; Filed, Oct. 21, 1952; 8:51 a. m.]

FEDERAL POWER COMMISSION

[Docket No. G-1966]

HOME GAS CO.

ORDER PERMITTING SUBSTITUTION OF PROPOSED TARIFF SHEETS FOR SUSPENDED SHEETS AND SUSPENDING PROPOSED NEW SHEETS

OCTOBER 16, 1952.

The Commission, pursuant to the authority contained in section 4 of the Natural Gas Act, by order issued May 29, 1952, suspended and deferred the use of Home Gas Company's (Home) proposed FPC Gas Tariff, First Revised Volume No. 1, until November 1, 1952, and until such further time as such tariff might be made effective in the manner prescribed by the Natural Gas Act, and ordered that a hearing concerning the lawfulness of Home's FPC Gas Tariff, First Revised Volume No. 1, be held upon a date to be fixed by further order of the Commission.

On September 12, 1952, Home filed with the Commission proposed First Revised Sheets Nos. 7, 10, 20, 21, and 22 and Original Sheet No. 8 to its FPC Gas Tariff, First Revised Volume No. 1, and requested permission, pursuant to § 154.66 of the Commission's regulations under the Natural Gas Act (18 CFR 154.66), that such filing of September 12, 1952, replace and supersede Original Sheets Nos. 7, 10, 20, 21, and 22 of its FPC Gas Tariff, First Revised Volume No. 1, which was suspended by said Commission order issued May 29, 1952.

The change on First Revised Sheet No. 7 and Original Sheet No. 8 is to add a section 7, entitled "Takes in Excess of Contract Demand," which specifies the charges to be made for quantities of gas taken in excess of the contract demand. First Revised Sheet No. 10 effects a change in the definition of the term "contract demand." First Revised Sheets Nos. 20, 21 and 22 effect an elimination of subparagraph (c) of section 10 and add an additional section 10.1 so as to provide that the effective contract demand will be specified in the service agreement and for the establishment of the contract demand under certain conditions. Such changes do not directly affect the suspended rate level.

The Commission finds:

(1) Special permission should be granted for the filing of said proposed First Revised Sheets Nos. 7, 10, 20, 21, and 22 and Original Sheet No. 8 to Home's FPC Gas Tariff, First Revised Volume No. 1, as requested.

(2) It is necessary and proper in the public interest and to aid in carrying out the provisions of the Natural Gas Act, that the hearing heretofore ordered by the Commission with respect to the lawfulness of Home's FPC Gas Tariff, First Revised Volume No. 1, shall concern the lawfulness of said tariff as amended by said First Revised Sheets Nos. 7, 10, 20, 21, and 22 and Original Sheet No. 8, and that said sheets shall be suspended as hereinafter provided and the use thereof be deferred pending hearing and decision thereon.

The Commission orders:

(A) Home be and it hereby is permitted to file First Revised Sheets Nos. 7, 10, 20, 21, and 22 and Original Sheet No. 8 to its FPC Gas Tariff, First Revised Volume No. 1, to replace Original Sheets Nos. 7, 10, 20, 21, and 22 contained in Home's FPC Gas Tariff, First Revised Volume No. 1, which tariff was suspended by order of the Commission issued May 29, 1952.

(B) Pursuant to the authority contained in section 4 of the Natural Gas Act, the public hearing heretofore ordered to be held upon a date to be fixed by further order of the Commission concerning the lawfulness of the rates, charges and classifications, subject to the jurisdiction of the Commission, contained in the aforesaid Home's FPC Gas Tariff, First Revised Volume No. 1, and suspended by order of the Commission issued May 29, 1952, shall concern the lawfulness of said tariff as amended by said First Revised Sheets Nos. 7, 10, 20, 21, and 22 and Original Sheet No. 8.

(C) Pending such hearing and decision thereon, said First Revised Sheets Nos. 7, 10, 20, 21, and 22 and Original Sheet No. 8, as filed on September 12, 1952, to Home's FPC Gas Tariff, First Revised Volume No. 1, subject to the jurisdiction of the Commission, be and they hereby are suspended and the use thereof deferred until November 1, 1952, and until such further time thereafter as said Home's FPC Gas Tariff, First Revised Volume No. 1, as amended by said First Revised Sheets Nos. 7, 10, 20, 21, and 22 and Original Sheet No. 8, might be made effective in the manner prescribed by the Natural Gas Act.

Date of issuance: October 16, 1952.

By the Commission.

[SEAL] LEON M. FUQUAY,
Secretary.

[F. R. Doc. 51-11427; Filed, Oct. 21, 1952; 8:52 a. m.]

[Docket No. G-1967]

MANUFACTURERS LIGHT AND HEAT CO.

ORDER PERMITTING SUBSTITUTION OF PROPOSED TARIFF SHEETS FOR SUSPENDED SHEETS AND SUSPENDING PROPOSED NEW SHEETS

OCTOBER 16, 1952.

The Commission, pursuant to the authority contained in section 4 of the Natural Gas Act, by order issued May 29, 1952, suspended and deferred the use of the Manufacturers Light and Heat Company's (Manufacturers) proposed FPC Gas Tariff, First Revised Volume No. 1, until November 1, 1952, and until such further time as such tariff might be made effective in the manner prescribed by the Natural Gas Act, and ordered that a hearing concerning the lawfulness of Manufacturers' FPC Gas Tariff, First Revised Volume No. 1, be held upon a date to be fixed by further order of the Commission.

On September 12, 1952, Manufacturers filed with the Commission proposed First Revised Sheets Nos. 7, 13, 23, 24, 25, and 26 and Original Sheet No. 7A to its FPC Gas Tariff, First Revised Volume No. 1, and requested permission, pursuant to § 154.66 of the Commission's regulations under the Natural Gas Act (18 CFR 154.66), that such filing of September 12, 1952, replace and supersede Original Sheets Nos. 7, 13, 23, 24, 25, and 26 of its FPC Gas Tariff, First Revised Volume No. 1, which was suspended by said Commission order issued May 29, 1952.

The change on First Revised Sheet No. 7 and Original Sheet No. 7A is to add a section 7, entitled "Takes in Excess of Contract Demand," which specifies the charges to be made for quantites of gas taken in excess of the contract demand. First Revised Sheet No. 13 effects a change in the definition of the term "contract demand." First Revised Sheets Nos. 23, 24, 25, and 26 effect an

elimination of sub-paragraph (c) of section 10 and add an additional section 10.1 so as to provide that the effective contract demand will be specified in the service agreement and for the establishment of the contract demand under certain conditions. Such changes do not directly affect the suspended rate level.

The Commission finds:

(1) Special permission should be granted for the filing of said proposed First Revised Sheets Nos. 7, 13, 23, 24, 25, and 26 and Original Sheet No. 7A to Manufacturers' FPC Gas Tariff, First Revised Volume No. 1, as requested.

(2) It is necessary and proper in the public interest and to aid in carrying out the provisions of the Natural Gas Act, that the hearing heretofore ordered by the Commission with respect to the lawfulness of Manufacturers' FPC Gas Tariff, First Revised Volume No. 1, shall concern the lawfulness of said tariff as amended by said First Revised Sheets Nos. 7, 13, 23, 24, 25, and 26 and Original Sheet No. 7A, and that said sheets shall be suspended as hereinafter provided and the use thereof be deferred pending hearing and decision thereon.

The Commission orders:

(A) Manufacturers be and it hereby is permitted to file First Revised Sheets Nos. 7, 13, 23, 24, 25, and 26 and Original Sheet No. 7A to its FPC Gas Tariff, First Revised Volume No. 1, to replace Original Sheets Nos. 7, 13, 23, 24, 25, and 26 contained in Manufacturers' FPC Gas Tariff, First Revised Volume No. 1, which tariff was suspended by order of the Commission issued May 29, 1952.

(B) Pursuant to the authority contained in section 4 of the Natural Gas Act, the public hearing heretofore ordered to be held upon a date to be fixed by further order of the Commission concerning the lawfulness of the rates, charges and classifications, subject to the jurisdiction of the Commission, contained in the aforesaid Manufacturers' FPC Gas Tariff, First Revised Volume No. 1, and suspended by order of the Commission issued May 29, 1952, shall concern the lawfulness of said tariff as amended by said First Revised Sheets Nos. 7, 13, 23, 24, 25, and 26 and Original Sheet No. 7A.

(C) Pending such hearing and decision thereon, said First Revised Sheets Nos. 7, 13, 23, 24, 25, and 26 and Original Sheet No. 7A, as filed on September 12, 1952, to Manufacturers' FPC Gas Tariff, First Revised Volume No. 1, subject to the jurisdiction of the Commission, be and they hereby are suspended and the use thereof deferred until November 1, 1952, and until such further time thereafter as said Manufacturers' FPC Gas Tariff, First Revised Volume No. 1, as amended by said First Revised Sheets Nos. 7, 13, 23, 24, 25, and 26 and Original Sheet No. 7A, might be made effective in the manner prescribed by the Natural Gas Act.

Date of issuance: October 16, 1952.

By the Commission.

[SEAL] LEON M. FUQUAY, *Secretary.*

[F. R. Doc. 52-11428; Filed, Oct. 21, 1952; 8:52 a. m.]

No. 207——3

[Docket No. G-2032]

TEXAS GAS TRANSMISSION CORP.

ORDER FIXING DATE OF HEARING

OCTOBER 16, 1952.

On August 18, 1952, Texas Gas Transmission Corporation (Applicant), a Delaware corporation having its principal place of business at 416 West Third Street, Owensboro, Kentucky, filed an application for a certificate of public convenience and necessity pursuant to section 7 of the Natural Gas Act, authorizing the construction and operation of 21 miles of 6⅝-inch pipe line looping certain of Applicant's existing pipe line facilities serving Robinson and Lawrenceville, Illinois, as more fully described in said application on file with the Commission and open to public inspection.

Applicant has requested that its application be heard under the shortened procedure provided by § 1.32 (b) (18 CFR 1.32 (b)) of the Commission's rules of practice and procedure, and no request to be heard, protest, or petition has been filed subsequent to the giving of due notice of the filing of the application, including publication in the FEDERAL REGISTER on September 18, 1952 (17 F. R. 8403).

The Commission finds: This proceeding is a proper one for disposition under the provisions of § 1.32 (b) of the Commission's rules of practice and procedure.

The Commission orders:

(A) Pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act, and the Commission's rules of practice and procedure, a hearing be held on November 3, 1952, at 9:45 a. m., e. s. t., in the Hearing Room of the Federal Power Commission, 1800 Pennsylvania Avenue NW., Washington, D. C., concerning the matters involved and the issues presented by such application: *Provided, however,* That the Commission may, after a noncontested hearing, forthwith dispose of the proceeding pursuant to the provisions of § 1.32 (b) of the Commission's rules of practice and procedure.

(B) Interested State Commissions may participate as provided by §§ 1.8 and 1.37 (f) (18 CFR 1.8 and 1.37 (f)) of the said rules of practice and procedure.

Date of issuance: October 16, 1952.

By the Commission.

[SEAL] LEON M. FUQUAY, *Secretary.*

[F. R. Doc. 52-11429; Filed, Oct. 21, 1952; 8:52 a. m.]

INTERSTATE COMMERCE COMMISSION

[4th Sec. Application 27466]

LUMBER FROM POINTS IN SOUTHERN TERRITORY TO POINTS IN NEBRASKA AND SOUTH DAKOTA

APPLICATION FOR RELIEF

OCTOBER 17, 1952.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: R. E. Boyle, Jr., Agent, for carriers parties to Agent C. A. Spaninger's tariff I. C. C. No. 1101.

Commodities involved: Lumber and related articles, carloads.

From: Points in southern territory.

To: Points in Nebraska and South Dakota.

Grounds for relief: Competition with rail carriers, circuitous routes, and to maintain grouping.

Schedules filed containing proposed rates: C. A. Spaninger, Agent, I. C. C. No. 1101, Supp. 68.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice. As provided by the general rules of practice of the Commission, Rule 73, persons other than applicants should fairly disclose their interest, and the position they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing. If because of an emergency a grant of temporary relief is found to be necessary before the expiration of the 15-day period, a hearing, upon a request filed within that period, may be held subsequently.

By the Commission, Division 2.

[SEAL] GEORGE W. LAIRD, *Acting Secretary.*

[F. R. Doc. 52-11413; Filed, Oct. 21, 1952; 8:49 a. m.]

DEPARTMENT OF JUSTICE

Office of Alien Property

PAOLO EMILIO BRUZZONE ET AL.

NOTICE OF INTENTION TO RETURN VESTED PROPERTY

Pursuant to section 32 (f) of the Trading With the Enemy Act, as amended, notice is hereby given of intention to return, on or after 30 days from the date of the publication hereof, the following property, subject to any increase or decrease resulting from the administration thereof prior to return, and after adequate provision for taxes and conservatory expenses:

Claimant, Claim No., Property, and Location

Paolo Emilio Bruzzone, Giorgio Bruzzone, and Graziella Brescianini ved. Bruzzone, Genoa, Italy; Claim No. 39602; $165.63 in the Treasury of the United States; one-third each to Paolo Emilio Bruzzone, Giorgio Bruzzone, and Gœraziella Brescianini ved. Bruzzone. Stock in the De Nobili Cigar Company, a New York corporation, consisting of 30 shares, third preferred capital stock, par value $25, Certificate No. 107, and 30 shares, common capital stock, par value $50 per share, Certificate No. 52, presently in custody of Safekeeping Department, Federal Reserve Bank of New York, at New York City; to Paolo Emilio Bruzzone, Giorgio Bruzzone, and Graziella Brescianini ved. Bruzzone, with Paolo Emilio Bruzzone and Giorgio Bruzzone each being entitled to one half of the stock subject to the payment of

income for life from one-third thereof to Graziella Brescianini ved. Bruzzone.

Executed at Washington, D. C., on October 16, 1952.

For the Attorney General.

[SEAL] ROWLAND F. KIRKS,
Assistant Attorney General,
Director, Office of Alien Property.

[F. R. Doc. 52-11433; Filed, Oct. 21, 1952; 8:53 a. m.]

MARGARETE SARA HENZE

NOTICE OF INTENTION TO RETURN VESTED PROPERTY

Pursuant to section 32 (f) of the Trading With the Enemy Act, as amended, notice is hereby given of intention to return, on or after 30 days from the date of the publication hereof, the following property, subject to any increase or decrease resulting from the administration thereof prior to return, and after adequate provision for taxes and conservatory expenses:

Claimant, Claim No., Property, and Location

Margarete Sara Henze, Westfalen, Germany; Claim No. 41138; $1,223.97 in the Treasury of the United States.

Executed at Washington, D. C., on OCTOBER 16, 1952.

For the Attorney General.

[SEAL] ROWLAND F. KIRKS,
Assistant Attorney General,
Director, Office of Alien Property.

[F. R. Doc. 52-11435; Filed, Oct. 21, 1952; 8:54 a. m.]

KNUT ANDREAS KNUTSEN

NOTICE OF INTENTION TO RETURN VESTED PROPERTY

Pursuant to section 32 (f) of the Trading With the Enemy Act, as amended, notice is hereby given of intention to return, on or after 30 days from the date of publication hereof, the following property located in Washington, D. C., including all royalties accrued thereunder and all damages and profits recoverable for past infringement thereof, after adequate provision for taxes and conservatory expenses:

Claimant, Claim No., and Property

Knut Andreas Knutsen, Paris, France; Claim No. 37108; property described in Vesting Order Nos. 666 (8 F. R. 5047, April 17, 1943); 672 (8 F. R. 5020, April 17, 1943); 1601 (8 F. R. 8566, June 21, 1943), relating to nine United States Letters Patent and three disclosures of inventions, as set forth in Schedule A attached hereto and made a part hereof.

Executed at Washington, D. C., on October 16, 1952.

For the Attorney General.

[SEAL] ROWLAND F. KIRKS,
Assistant Attorney General,
Director, Office of Alien Property.

SCHEDULE A—PROPERTY VESTED FROM KNUT ANDREAS KNUTSEN

I. PATENTS

Patent No.	Date issued	Inventor	Title	Vesting order
1,916,801	7- 4-33	Knut Andreas Knutsen	Machine for Sorting Perforated Cards	672
1,971,858	8-28-34	do	Printing Device for Tabulating Machines for Perforated Cards.	672
1,971,859	8-28-34	do	do	666
1,971,860	8-28-34	Knut Andreas Knutsen and Anders Elrikson Vethe.[1]	Printing Device	666
2,046,464	7- 7-36	Knut Andreas Knutsen	Printing Device for Statistical Calculating and Tabulating Machines Utilizing Perforated Cards.	666
2,046,465	7- 7-36	do	Card Controlled Device	666
2,272,916	2-10-42	do	Verifying Machine for Perforated Cards	666
2,175,530	10-10-39	do	Printing Device Particularly for Tabulating Machines Controlled by Record Cards or Bands.	666
2,227,143	12-31-40	do	do	666

[1] By Assignment dated Oct. 8, 1935, duly recorded in the United States Patent Office on Nov. 1, 1935, in liber U-164, page 490, Vethe assigned his undivided ½ interest in subject patent to Knutsen.

II. DISCLOSURES OF INVENTIONS VESTED AS TRANSACTION CONTROLS BY VESTING ORDER NO. 1601

No.	Date executed	Inventor	Title
T. C. 1050 (now Pat. App. Ser. No. 53,502)	4-27-42 (10-8-48)	Knut Andreas Knutsen	Record Card Interpreter.
T. C. 1051	[2] 4-27-42	do	Punch Die.
T. C. 1052 (now Pat. App. Ser. No. 53,503)	4-27-42 (10-8-48)	do	Card Reproducing Machine.

[2] This refers to the date the patent application was filed in the U. S. Patent Office by the Office of Alien Property.
[3] This disclosure has not been filed in the Patent Office by the Office of Alien Property.

[F R. Doc. 52-11438; Filed, Oct. 21, 1952; 8:54 a. m.]

COMPAGNIE GENERALE POUR L'EQUIPEMENT AERONAUTIQUE

NOTICE OF INTENTION TO RETURN VESTED PROPERTY

Pursuant to section 32 (f) of the Trading With the Enemy Act, as amended, notice is hereby given of intention to return, on or after 30 days from the date of publication hereof, the following property located in Washington, D. C., including all royalties accrued thereunder and all damages and profits recoverable for past infringement thereof, after adequate provision for taxes and conservatory expenses:

Claimant, Claim No., and Property

Compagnie Generale pour l'Equipement Aeronautique, Paris, France; Claim No. 35-530; property described in Vesting Order No. 666 (8 F. R. 5047, April 17, 1943), relating to United States Letters Patent No. 2,138,339 and property described in Vesting Order No. 1028 (8 F. R. 4205, April 2, 1943), relating to Patent Application Ser. No. 329,155 (now United States Letters Patent No. 2,276,673).

Executed at Washington, D. C., on October 16, 1952.

For the Attorney General.

[SEAL] ROWLAND F. KIRKS,
Assistant Attorney General,
Director, Office of Alien Property.

[F. R. Doc. 52-11434; Filed, Oct. 21, 1952; 8:54 a. m.]

AGATHA HOCH ET AL.

NOTICE OF INTENTION TO RETURN VESTED PROPERTY

Pursuant to section 32 (f) of the Trading With the Enemy Act, as amended, notice is hereby given of intention to return, on or after 30 days from the date of the publication hereof, the following property, subject to any increase or decrease resulting from the administration thereof prior to return, and after adequate provision for taxes and conservatory expenses:

Claimant, Claim No., Property, and Location

Agatha Hoch, nee Dobler, Anton Dobler, Oskar Dobler, Karoline Jaeger, nee Dobler, and Erich Dobler, Hohenems, Austria; Katharina Drexel, and Manfred Drexel, Lustenau, Austria; Claim No. 46335; $630.81 in the Treasury of the United States, returnable as follows: ⅛ each to Agatha Hoch, nee Dobler, Anton Dobler, Oskar Dobler, Karoline Jaeger, nee Dobler, and Erich Dobler, and ⅛ each to Manfred Drexel and Katharina Drexel.

Executed at Washington, D. C., on October 16, 1952.

For the Attorney General.

[SEAL] ROWLAND F. KIRKS,
Assistant Attorney General,
Director, Office of Alien Property.

[F. R. Doc. 52-11436; Filed, Oct. 21, 1952; 8:54 a. m.]

LUCREZIA FAGLIA MAZZOTTI ET AL.

NOTICE OF INTENTION TO RETURN VESTED PROPERTY

Pursuant to section 32 (f) of the Trading With the Enemy Act, as amended, notice is hereby given of intention to return, on or after 30 days from the date of the publication hereof, the following property, subject to any increase or decrease resulting from the administration thereof prior to return, and after adequate provision for taxes and conservatory expenses:

Claimant, Claim No., Property and Location

Lucrezia Faglia Mazzotti, Angelica Mazzotti, Milan, Italy; and Guido Fenaroli, Turin, Italy; Claim No. 39800; $153.47 in the Treasury of the United States and stock of the De Nobili Cigar Company, a New York corporation, consisting of 30 shares, third preferred capital stock, par value $25 per share, Certificate No. 280, presently in custody of Safekeeping Department, Federal Reserve Bank of New York, at New York City; two-fifths thereof each to Lucrezia Faglia Mazzotti and Angelica Mazzotti and one-fifth thereof to Guido Fenaroli.

Executed at Washington, D. C., on October 16, 1952.

For the Attorney General.

[SEAL] ROWLAND F. KIRKS,
Assistant Attorney General,
Director, Office of Alien Property.

[F. R. Doc. 52-11439; Filed, Oct. 21, 1952; 8:55 a. m.]

GERHARD JAHN ET AL.

NOTICE OF INTENTION TO RETURN VESTED PROPERTY

Pursuant to section 32 (f) of the Trading With the Enemy Act, as amended, notice is hereby given of intention to return, on or after 30 days from the date of the publication hereof, the following property, subject to any increase or decrease resulting from the administration thereof prior to return, and after adequate provision for taxes and conservatory expenses:

Claimant, Claim No., Property, and Location

Gerhard Jahn, Rotenberg 32, Marburg/Lahn, Germany; Ilse Jahn, General Hospital, Birmingham, England; and Johanna Jahn, General Hospital, Birmingham, England; Claim No. 43031; $992.48 in the Treasury of the United States and of this amount: $330.82 to Gerhard Jahn; $330.83 to Ilse Jahn; $330.83 to Johanna Jahn. Three fifths of all right, title, interest and claim of the issue of Lily Schluechterer Jahn, deceased, in and to the trust created under the will of Sigfried Schluechterer, deceased, in equal shares to: Gerhard Jahn, Ilse Jahn, and Johanna Jahn.

Executed at Washington, D. C., on October 16, 1952.

For the Attorney General.

[SEAL] ROWLAND F. KIRKS,
Assistant Attorney General,
Director, Office of Alien Property.

[F. R. Doc. 52-11437; Filed, Oct. 21, 1952; 8:54 a. m.]

JOHANNA AND URSULA SCHATTMANN

REVOCATION OF NOTICE OF INTENTION TO RETURN

In the matter of the claim of Johanna Schattmann and Ursula Schattmann, Claim No. 36356, Vesting Orders Nos. 4316 and 6421.

Whereas, a Notice of Intention to Return to the above claimants the property vested by the above vesting orders was duly executed by the Director of this Office on October 9, 1951, and the said notice was published in the FEDERAL REGISTER on October 13, 1951 (16 F. R. 10511), and

Whereas, Determination and Return Order No. 1132 were executed by the said Director on November 19, 1951, allowing the above claim and directing the return of the vested property to the above claimants, and the said Determination and Return Order having been revoked and cancelled by order of the undersigned dated October 13, 1952:

It is ordered, That the Notice of Intention herein executed October 9, 1951, and published in the FEDERAL REGISTER October 13, 1951, be and the same is hereby revoked.

Executed at Washington, D. C., on October 16, 1952.

For the Attorney General.

[SEAL] ROWLAND F. KIRKS,
Assistant Attorney General,
Director, Office of Alien Property.

[F. R. Doc. 52-11440; Filed, Oct. 21, 1952; 8:55 a. m.]